

Union Territories - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

WHY THE CONSTITUTION USES UNION TERRITORIES

STEP 1

- elected legislature + State executive + exclusive State-List sphere
- decreasing territorial autonomy / increasing Union role

STEP 2

- UT WITH LEGISLATURE
- elected assembly + Administrator/LG + Parliament's overriding competence

STEP 3

- UT WITHOUT LEGISLATURE
- President - Administrator/LG - administration under Union control

STEP 4

- [FACT] Article 1 places States and Union Territories within the territory of India; Polity 05 owns the full territorial
- [FACT] Part VIII creates a centrally administered default while permitting differentiated local

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Union Territories - Complete Uncompressed Learning Session

Subject: Indian Polity | **Topic:** 25 | **GS-II + Prelims** | **Export date:** 2026-08-24 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] verified constitutional, statutory, judicial or official proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated legal or institutional control; [LIMIT] qualification preventing overstatement.

Package method, source priority and current legal control

- [CURRENT] Status is controlled to **5 September 2026, Asia/Kolkata**.
- [CURRENT] **Live official refresh, 5 September 2026:** MHA, India Code, Delhi, Jammu and Kashmir and Ladakh official portals were rechecked on 5 September 2026. India continues to have eight Union Territories; Delhi, Puducherry and Jammu and Kashmir have legislatures.
- [FACT] Source order followed: `basic/Union-Territories.md` -> `advanced/25_Union-Territories.md` -> `basic/Union-and-Territory.md` and Polity 05 only for Articles 1-4 boundaries -> local OCR-searchable M. Laxmikanth Union Territories chapter -> audited PYQ ledgers and the locally held official 2025 GS-II paper -> authoritative constitutional, statutory, judicial, MHA, Department of Justice and Jammu and Kashmir government sources. Qdrant was not used.
- [CURRENT] Legal and institutional control date is **5 September 2026, Asia/Kolkata**.
- [CURRENT] India has **8 Union Territories**: Andaman and Nicobar Islands; Chandigarh; Dadra and Nagar Haveli and Daman and Diu; National Capital Territory of Delhi; Jammu and Kashmir; Ladakh; Lakshadweep; and Puducherry.
- [CURRENT] The three UTs with legislatures are **NCT Delhi, Puducherry and Jammu and Kashmir**. Their legal bases are not identical.
- [CURRENT] Jammu and Kashmir has an elected Assembly and Council of Ministers after the 2024 election. The official J&K Budget Speech 2026-27 is presented by Omar Abdullah as Chief Minister and Minister of Finance to the House. Statehood has **not** been legally restored.
- [CURRENT] The Government of NCT of Delhi (Amendment) Act, 2023 is operative. It created the National Capital Civil Service Authority and gives the Lieutenant Governor the final decision where he differs from an Authority recommendation. Therefore, the Delhi services judgment (2023) cannot be stated as the complete present rule by itself.
- [LIMIT] No final Supreme Court judgment striking down the 2023 Delhi amendment was located in the official judgment/order search by the control date. The Act must therefore be treated as operative law while its constitutional challenge remains unresolved.
- [LIMIT] The official Article 370 judgment directed elections by 30 September 2024 and said restoration of statehood should occur at the earliest and as soon as possible. It fixed no statehood date and did not finally decide the validity of converting J&K into a UT because of the Union's assurance.
- [LIMIT] Administrator/LG officeholders, vacancy figures, litigation listings and dashboard counts change. This package states durable offices and dated legal status, not volatile officeholder lists or unsourced counts.
- [LIMIT] "Union Territory" is not one uniform governmental model. Direct administration, a statutory legislature and Delhi's constitutionally entrenched NCT arrangement must be separated.

Authoritative control set

1. Constitution of India, Legislative Department: Articles 239, 239A, 239AA, 239AB, 239B, 240, 241 and 246(4).
2. Government of Union Territories Act, 1963, India Code consolidated text as on 6 April 2026.
3. Government of NCT of Delhi Act, 1991 and Government of NCT of Delhi (Amendment) Act, 2023, Gazette Act 19 of 2023.
4. *Government of NCT of Delhi v. Union of India*, Constitution Bench, 4 July 2018.
5. *Government of NCT of Delhi v. Union of India*, Constitution Bench services judgment, 11 May 2023.

6. Jammu and Kashmir Reorganisation Act, 2019 and its later amendments.
7. Transaction of Business of the Government of Union Territory of Jammu and Kashmir (Second Amendment) Rules, 2024, G.S.R. 386(E).
8. *In Re: Article 370 of the Constitution (2023)* INSC 1058.
9. *K. Lakshminarayanan (2018) v. Union of India*, Supreme Court, 6 December 2018.
10. Official J&K Finance Department Budget Speech 2026-27 and official High Court/government portals.

Roadmap

Stage	Coverage	Exam outcome
Rationale and evolution	chief commissioners' provinces to the present 8 UTs	explains why UTs exist
Constitutional map	Articles 239-241 and 246(4)	solves provision and competence questions
Administrative architecture	President, Administrator/LG, Parliament and regulations	distinguishes central administration from State government
Territorial profiles	five UTs without legislatures	applies the framework accurately
Three legislatures	Delhi, Puducherry and J&K	prevents false equivalence
Delhi deep dive	Article 239AA, 2018, 2023 and NCCSA	controls the most litigated UT model
Puducherry	Article 239A, 1963 Act and nominated members	handles statutory-legislature traps
Jammu and Kashmir	2019 Act, 2024 election, LG powers and statehood	updates stale notes
Judiciary	Article 241 and current High Court arrangements	solves jurisdiction questions
Federal evaluation	asymmetry, accountability and institutional friction	builds GS-II analysis
Workbook	two verified routed PYQs, 48 MCQs and eight solved Mains	converts doctrine into marks

Scope ownership and cross-links

- **Polity 05 - Union and Territory:** owns Articles 1-4, territorial reorganisation, cession, Berubari and the State-to-UT map-changing power.
- **Polity 09/13 - Federal System and Centre-State Relations:** owns the general federal distribution and cooperative-federalism doctrine.
- **Polity 19 - Governor, Chief Minister and State Council:** owns the State Governor/CoM model. This package uses it only to contrast an Administrator.
- **Polity 20 - State Legislature:** owns the complete State-legislature procedure. This package owns UT-legislature deviations.
- **Polity 21 - High Court and Subordinate Courts:** owns general High Court doctrine. This package owns the Article 241 UT allocation matrix.
- **Polity 22 - Special Provisions:** owns Article 370 history, Article 371 family and full *In Re Article 370* doctrine. This package owns the post-2019 J&K UT institutions.
- **Polity 26 - Scheduled and Tribal Areas:** owns Fifth/Sixth Schedule design; Ladakh safeguard demands are only a current cross-link here.
- **Parliament / President topics:** own general parliamentary legislation and presidential office. This package owns their UT-specific operation.
- [LIMIT] Cross-links do not remove the need for an independently answer-complete UT package; they prevent duplicate ownership of Articles 1-4, Article 370 history and general State institutions.

DEEP-REVIEW LEARNING CONTRACT

Control	Binding rule for this package
Syllabus boundary	Complete Polity Basic/Core is answer-complete before optional Advanced depth.
Text hierarchy	Constitution/Act/rule/notification -> binding judgment -> authoritative institution -> Constituent Assembly material -> standard textbook.
Legal precision	State exact Article, Part, Schedule, amendment, case, date, institution, procedure, exception and current operative status.
Doctrine method	Text -> institutional mechanism -> controlling case -> exception/limit -> present legal status.
Chronology	Enactment, commencement, amendment, judgment and implementation dates remain separate.
Boundary method	Topic ownership and cross-owner bridges are explicit; adjacent PYQs never become fabricated direct routes.
Practice contract	Every solved item has demand decoding, examiner-grade model, timed compression plan, marks rationale and answer-specific improvement.
Approval	This immutable successor remains approved: false pending explicit approval.

Canonical Basic/Core owner: upsc-ai-kit\knowledge\Polity\basic\Union-Territories.md

Canonical topic owner:

upsc-ai-kit\knowledge\Polity\25_Union-Territories_Complete-Topic-Package.md **Optional**

Advanced owner: upsc-ai-kit\knowledge\Polity\advanced\25_Union-Territories.md **Official**

syllabus mapping: upsc-ai-kit\knowledge\Polity\OFFICIAL-UPSC-SYLLABUS-MAPPING.md

EVIDENCE, PYQ AND CURRENT-STATUS CONTROL

- **Four independent ledgers:** literal syllabus/index, indispensable

prerequisites, standard textbook taxonomy and complete routed 2018-2026 PYQ demands were built before repair.

- **Hostile search:** missing Articles, Parts, Schedules, amendments, cases,

institutional mechanisms, exceptions, chronology, source status and cross-owner boundaries are hard failures.

- **Answer rule:** claim -> exact constitutional/statutory/case evidence ->

institutional analysis -> exception or qualification.

- **Current-status note, rechecked 2026-09-05:** Rechecked 2026-09-05: India has eight UTs; Delhi, Puducherry and J&K have legislatures. J&K has an elected government but remains a UT; Ladakh has no legislature. Act 19 of 2023 remains operative and the Delhi services constitutional challenge remains unresolved.

Authoritative live sources:

- <https://legislative.gov.in/document/constitution-of-india-in-english>
- <https://www.indiacode.nic.in/handle/123456789/1362>
- <https://igr.jk.gov.in/files/J&K%20Reorganisation%20Act,%202019.pdf>
- <https://www.mha.gov.in/MHA1/Par2017/pdfs/par2026-pdfs/LS24032026/5250.pdf>
- https://api.sci.gov.in/supremecourt/2019/29796/29796_2019_1_1501_49019_Judgement_11-Dec-2023.pdf
- <https://www.sci.gov.in/latest-orders/>

BASIC LEARNING SESSION



Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

SESSION 1 - WHY THE CONSTITUTION USES UNION TERRITORIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Why The Constitution Uses Union Territories explains why centrally administered territories combine Union responsibility with differentiated local democracy.

Technical definition: Why The Constitution Uses Union Territories operates through why centrally administered territories combine Union responsibility with differentiated local democracy, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

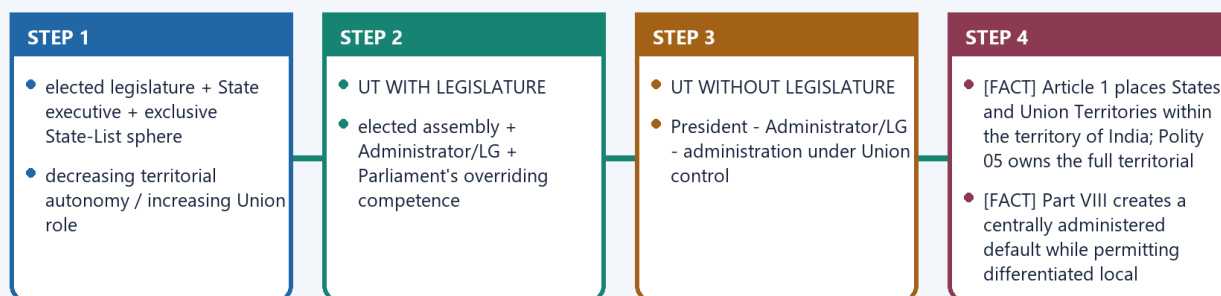
Why The Constitution Uses Union Territories is best understood as why centrally administered territories combine Union responsibility with differentiated local democracy.

MUST-WRITE KEYWORDS

- CONSTITUTION
- USES
- centrally
- administered
- combine
- responsibility
- differentiated

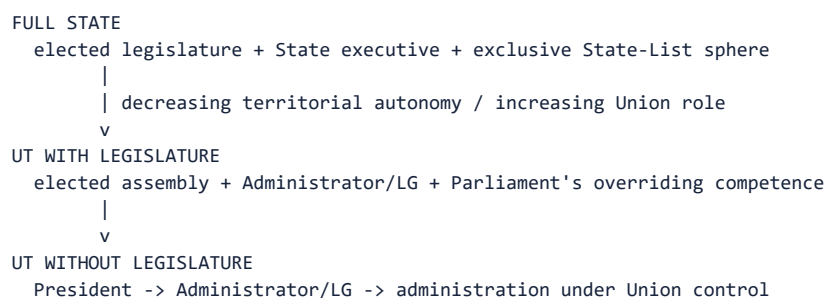
How to use them: Frame the answer through CONSTITUTION; define USES, connect centrally with administered to explain the mechanism, and use combine for the decisive comparison or qualification.

WHY THE CONSTITUTION USES UNION TERRITORIES



Topic-specific visual map: Why the Constitution uses Union Territories.

Visual 1 - The territorial-governance spectrum



Caption: A UT is constitutionally part of India but not necessarily a constituent State with the same federal autonomy.

- [FACT] Article 1 places States and Union Territories within the territory of India; Polity 05 owns the full territorial distinction.
- [FACT] Part VIII creates a centrally administered default while permitting differentiated local institutions.
- [ANALYSIS] UT status is a constitutional technique for combining territorial inclusion with stronger Union supervision.
- [LIMIT] "Centrally administered" does not mean absence of courts, local bodies or public representation; it means the federal distribution differs from that of a State.

CLOSING RECALL FLOW - WHY THE CONSTITUTION USES UNION TERRITORIES

START / CONCEPT: WHY THE CONSTITUTION USES UNION TERRITORIES

|

↓

EXACT TERMS: CONSTITUTION · USES · centrally · administered · combine · responsibility · differentiated

|

↓

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to why centrally administered territories combine Union responsibility with differentiated local democracy.

|

↓

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in why the constitution uses union territories.

|

↓

UPSC TRAP / ANSWER-USE: Do not generalise why the constitution uses union territories beyond its exact Article, statute, territorial field or dated legal status.

|

↓

ANSWER-GRABBING FORMULATION: Why The Constitution Uses Union Territories is best understood as why centrally administered territories combine Union responsibility with differentiated local democracy.

SESSION 2 - EVOLUTION FROM CENTRALLY ADMINISTERED TERRITORIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Evolution From Centrally Administered Territories explains how colonial and Part C or D arrangements evolved into the post-1956 Union Territory category.

Technical definition: Evolution From Centrally Administered Territories operates through how colonial and Part C or D arrangements evolved into the post-1956 Union Territory category, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Evolution From Centrally Administered Territories is best understood as how colonial and Part C or D arrangements evolved into the post-1956 Union Territory category.

MUST-WRITE KEYWORDS

- EVOLUTION
- CENTRALLY
- ADMINISTERED
- colonial
- Part
- arrangements
- evolved

How to use them: Frame the answer through EVOLUTION; define CENTRALLY, connect ADMINISTERED with colonial to explain the mechanism, and use Part for the decisive comparison or qualification.

EVOLUTION FROM CENTRALLY ADMINISTERED TERRITORIES

AXIS 1

- 1874 scheduled districts
- chief commissioners' provinces
- 1950 Part C States / Part D territory

AXIS 2

- 1956 Seventh Amendment + States Reorganisation Act
- Union Territories as a constitutional category
- former UTs become States / acquired territories become UTs

AXIS 3

- 2019 J&K and Ladakh created
- 26 Jan 2020 DNH + Daman & Diu merger

Topic-specific visual map: Evolution from centrally administered territories.

Visual 2 - Evolution timeline

1874 scheduled districts

|
chief commissioners' provinces

|
1950 Part C States / Part D territory

|
1956 Seventh Amendment + States Reorganisation Act

|
Union Territories as a constitutional category

|
former UTs become States / acquired territories become UTs

|
2019 J&K and Ladakh created

|
26 Jan 2020 DNH + Daman & Diu merger

|
5 Sep 2026: 8 UTs

- [FACT] The Seventh Amendment and States Reorganisation Act, 1956 replaced the earlier Part C/D arrangements with the modern UT framework.
- [FACT] Himachal Pradesh, Manipur, Tripura, Mizoram, Arunachal Pradesh and Goa were once UTs before becoming States.
- [FACT] Former French and Portuguese possessions entered the Union through distinct constitutional and statutory steps.
- [ANALYSIS] UT status has been both a durable model and a transitional stage; no universal trajectory from UT to State exists.

CLOSING RECALL FLOW - EVOLUTION FROM CENTRALLY ADMINISTERED TERRITORIES

START / CONCEPT: EVOLUTION FROM CENTRALLY ADMINISTERED TERRITORIES

|

↓

EXACT TERMS: EVOLUTION · CENTRALLY · ADMINISTERED · colonial · Part · arrangements · evolved

|

↓

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to how colonial and Part C or D arrangements evolved into the post-1956 Union Territory category.

|

↓

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in evolution from centrally administered territories.

|

↓

UPSC TRAP / ANSWER-USE: Do not generalise evolution from centrally administered territories beyond its exact Article, statute, territorial field or dated legal status.

|

↓

ANSWER-GRABBING FORMULATION: Evolution From Centrally Administered Territories is best understood as how colonial and Part C or D arrangements evolved into the post-1956 Union Territory category.

SESSION 3 - CURRENT MAP: THE EIGHT UNION TERRITORIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Current Map: The Eight Union Territories explains which eight Union Territories exist and which three presently have legislatures.

Technical definition: Current Map: The Eight Union Territories operates through which eight Union Territories exist and which three presently have legislatures, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

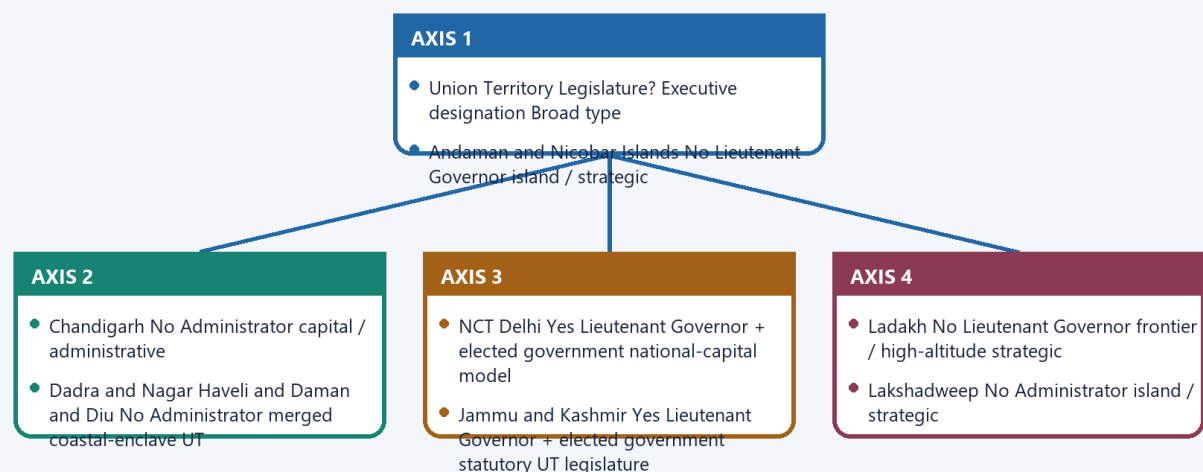
Current Map: The Eight Union Territories is best understood as which eight Union Territories exist and which three presently have legislatures.

MUST-WRITE KEYWORDS

- MAP
- EIGHT
- exist
- three
- presently
- have
- legislatures

How to use them: Frame the answer through MAP; define EIGHT, connect exist with three to explain the mechanism, and use presently for the decisive comparison or qualification.

CURRENT MAP: THE EIGHT UNION TERRITORIES



Topic-specific visual map: Current map: the eight Union Territories.

Visual 3 - Current legal inventory

Union Territory	Legislature?	Executive designation	Broad type
Andaman and Nicobar Islands	No	Lieutenant Governor	island / strategic
Chandigarh	No	Administrator	capital / administrative
Dadra and Nagar Haveli and Daman and Diu	No	Administrator	merged coastal-enclave UT
NCT Delhi	Yes	Lieutenant Governor + elected government	national-capital model
Jammu and Kashmir	Yes	Lieutenant Governor + elected government	statutory UT legislature
Ladakh	No	Lieutenant Governor	frontier / high-altitude strategic
Lakshadweep	No	Administrator	island / strategic
Puducherry	Yes	Lieutenant Governor + elected government	Article 239A statutory model

- [CURRENT] The official National Portal of India and MHA material identify these eight UTs.
- [FACT] The merger Act combined Dadra and Nagar Haveli with Daman and Diu from 26 January 2020.
- [LIMIT] The table states offices, not current officeholders; personnel appointments can change without changing the constitutional model.

CLOSING RECALL FLOW - CURRENT MAP: THE EIGHT UNION TERRITORIES

START / CONCEPT: CURRENT MAP: THE EIGHT UNION TERRITORIES

|

v

EXACT TERMS: MAP · EIGHT · exist · three · presently · have · legislatures

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to which eight Union Territories exist and which three presently have legislatures.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in current map: the eight union territories.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise current map: the eight union territories beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Current Map: The Eight Union Territories is best understood as which eight Union Territories exist and which three presently have legislatures.

SESSION 4 - WHY DIFFERENT UTS WERE CREATED

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Why Different Uts Were Created explains how capital, strategic, historical and transitional rationales explain differentiated territorial design.

Technical definition: Why Different Uts Were Created operates through how capital, strategic, historical and transitional rationales explain differentiated territorial design, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Why Different Uts Were Created is best understood as how capital, strategic, historical and transitional rationales explain differentiated territorial design.

MUST-WRITE KEYWORDS

- DIFFERENT
- UTS
- WERE
- CREATED
- capital
- strategic
- historical

How to use them: Frame the answer through DIFFERENT; define UTS, connect WERE with CREATED to explain the mechanism, and use capital for the decisive comparison or qualification.

Visual 4 - Rationale matrix

Rationale	Illustrative UTs	Governance logic	Qualification
national capital / administration	Delhi, Chandigarh	Union-wide interest and capital functions	local democracy still matters
strategic geography	A&N, Lakshadweep, Ladakh	defence, maritime/frontier and connectivity concerns	strategy does not erase rights
cultural-historical distinctiveness	Puducherry, DNHDD	distinct colonial and linguistic histories	internal diversity remains
security / transition	J&K	2019 statutory reorganisation	statehood remains a live legal-political issue
small scale / special administration	several non-legislature UTs	direct coordination and limited scale	population alone is not a legal test

- [ANALYSIS] The strongest justification for UT status is functional differentiation, not a claim that residents deserve less democracy.
- [LIMIT] These are explanatory categories, not constitutional grounds that automatically determine status.

CLOSING RECALL FLOW - WHY DIFFERENT UTs WERE CREATED

START / CONCEPT: WHY DIFFERENT UTs WERE CREATED

|

v

EXACT TERMS: DIFFERENT • UTs • WERE • CREATED • capital • strategic • historical

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to how capital, strategic, historical and transitional rationales explain differentiated territorial design.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in why different ut's were created.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise why different ut's were created beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Why Different Ut's Were Created is best understood as how capital, strategic, historical and transitional rationales explain differentiated territorial design.

SESSION 5 - PART VIII MASTER MAP

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Part VIII Master Map explains how Articles 239 through 241 and Article 246(4) organise administration, legislation and courts.

Technical definition: Part VIII Master Map operates through how Articles 239 through 241 and Article 246(4) organise administration, legislation and courts, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Part VIII Master Map is best understood as how Articles 239 through 241 and Article 246(4) organise administration, legislation and courts.

MUST-WRITE KEYWORDS

- PART
- VIII
- MASTER
- MAP
- Articles

How to use them: Frame the answer through PART; define VIII, connect MASTER with MAP to explain the mechanism, and use Articles for the decisive comparison or qualification.

PART VIII MASTER MAP

AXIS 1

- 239 administration through President-appointed Administrator
- 239A Parliament may create legislature/CoM for Puducherry

AXIS 2

- 239AA special constitutional scheme for NCT Delhi
- 239AB failure-of-machinery mechanism for Delhi

AXIS 3

- 239B Administrator's ordinance power for Puducherry
- 240 President's regulations for specified UTs

AXIS 4

- 241 High Courts for UTs
- 246(4) Parliament may legislate on any matter for territory not included in a State

Topic-specific visual map: Part VIII master map.

Visual 5 - Article chain

239 administration through President-appointed Administrator
 239A Parliament may create legislature/CoM for Puducherry
 239AA special constitutional scheme for NCT Delhi
 239AB failure-of-machinery mechanism for Delhi
 239B Administrator's ordinance power for Puducherry
 240 President's regulations for specified UTs
 241 High Courts for UTs

Supporting power:

246(4) Parliament may legislate on any matter for territory not included in a State

- [FACT] Part VIII currently runs from Articles 239 to 241; Article 242 was omitted.
- [FACT] Section 13 of the J&K Reorganisation Act applies Article 239A's provisions to J&K.
- [ANALYSIS] The scheme moves from a central-administration default to carefully specified exceptions.

CLOSING RECALL FLOW - PART VIII MASTER MAP

START / CONCEPT: PART VIII MASTER MAP

|

v

EXACT TERMS: PART • VIII • MASTER • MAP • Articles

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to how Articles 239 through 241 and Article 246(4) organise administration, legislation and courts.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in part viii master map.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise part viii master map beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Part Viii Master Map is best understood as how Articles 239 through 241 and Article 246(4) organise administration, legislation and courts.

SESSION 6 - ARTICLE 239: THE ADMINISTRATIVE CHAIN

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 239: The Administrative Chain explains presidential administration through an appointed Administrator under Article 239.

Technical definition: Article 239: The Administrative Chain operates through presidential administration through an appointed Administrator under Article 239, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

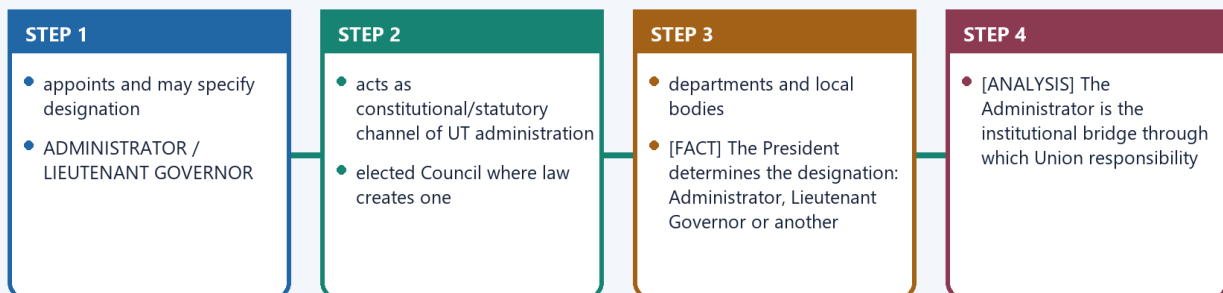
Article 239: The Administrative Chain is best understood as presidential administration through an appointed Administrator under Article 239.

MUST-WRITE KEYWORDS

- ARTICLE
- ADMINISTRATIVE
- CHAIN
- presidential
- administration
- appointed

How to use them: Frame the answer through ARTICLE; define ADMINISTRATIVE, connect CHAIN with presidential to explain the mechanism, and use administration for the decisive comparison or qualification.

ARTICLE 239: THE ADMINISTRATIVE CHAIN



Topic-specific visual map: Article 239: the administrative chain.

Visual 6 - Formal executive chain

```

PRESIDENT
|
| appoints and may specify designation
v
ADMINISTRATOR / LIEUTENANT GOVERNOR
|
| acts as constitutional/statutory channel of UT administration
v
UT ADMINISTRATION
|
+--> elected Council where law creates one
+--> departments and local bodies

```

- [FACT] Article 239(1) says every UT shall, save as Parliament otherwise provides by law, be administered by the President acting through an Administrator appointed by him.
- [FACT] The President determines the designation: Administrator, Lieutenant Governor or another specified designation.
- [ANALYSIS] The Administrator is the institutional bridge through which Union responsibility enters territorial administration.
- [LIMIT] The exact degree of discretion depends on the Constitution and the governing statute; Article 239 alone does not answer every Delhi, Puducherry or J&K dispute.

CLOSING RECALL FLOW - ARTICLE 239: THE ADMINISTRATIVE CHAIN

```

START / CONCEPT: ARTICLE 239: THE ADMINISTRATIVE CHAIN
|
v
EXACT TERMS: ARTICLE · ADMINISTRATIVE · CHAIN · presidential · administration · appointed
|
v
MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and
institution-specific allocation relevant to presidential administration through an appointed
Administrator under Article 239.
|
v
CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and
Union control in article 239: the administrative chain.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise article 239: the administrative chain beyond its exact
Article, statute, territorial field or dated legal status.
|
v
ANSWER-GRABBING FORMULATION: Article 239: The Administrative Chain is best understood as
presidential administration through an appointed Administrator under Article 239.

```

SESSION 7 - ADMINISTRATOR IS NOT A STATE GOVERNOR

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Administrator Is Not A State Governor explains why a Union Territory Administrator is the President's agent rather than a Part VI Governor.

Technical definition: Administrator Is Not A State Governor operates through why a Union Territory Administrator is the President's agent rather than a Part VI Governor, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Administrator Is Not A State Governor is best understood as why a Union Territory Administrator is the President's agent rather than a Part VI Governor.

MUST-WRITE KEYWORDS

- ADMINISTRATOR
- NOT

- GOVERNOR
- President
- agent
- rather

How to use them: Frame the answer through ADMINISTRATOR; define NOT, connect GOVERNOR with President to explain the mechanism, and use agent for the decisive comparison or qualification.

Visual 7 - Administrator versus Governor

Dimension	UT Administrator/LG	State Governor
constitutional role	President's agent under Article 239	constitutional head of a State
federal unit	UT is not a State	State is a constituent federal unit
legislative competence around unit	Parliament retains State-List power for UT	State legislature has ordinary State-List sphere
local CoM	only where Constitution/statute provides	normal parliamentary executive under Part VI
discretion	model-specific and often wider	bounded by Part VI, law and case law

- [FACT] The Supreme Court and the standard constitutional text reject treating an Administrator as simply another Governor.
- [ANALYSIS] Importing State-Governor assumptions into UT disputes produces the most common conceptual error.
- [LIMIT] Both offices can act as formal heads in some functions, but similarity of ceremony does not erase different legal sources.

CLOSING RECALL FLOW - ADMINISTRATOR IS NOT A STATE GOVERNOR

START / CONCEPT: ADMINISTRATOR IS NOT A STATE GOVERNOR

|

v

EXACT TERMS: ADMINISTRATOR • NOT • GOVERNOR • President • agent • rather

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to why a Union Territory Administrator is the President's agent rather than a Part VI Governor.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in administrator is not a state governor.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise administrator is not a state governor beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Administrator Is Not A State Governor is best understood as why a Union Territory Administrator is the President's agent rather than a Part VI Governor.

SESSION 8 - A STATE GOVERNOR MAY ADMINISTER AN ADJOINING UT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A State Governor May Administer An Adjoining Ut explains how one person can act separately as State Governor and adjoining Union Territory Administrator.

Technical definition: A State Governor May Administer An Adjoining Ut operates through how one person can act separately as State Governor and adjoining Union Territory Administrator, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A State Governor May Administer An Adjoining Ut is best understood as how one person can act separately as State Governor and adjoining Union Territory Administrator.

MUST-WRITE KEYWORDS

- GOVERNOR
- ADMINISTER
- ADJOINING
- person
- can

How to use them: Frame the answer through GOVERNOR; define ADMINISTER, connect ADJOINING with person to explain the mechanism, and use can for the decisive comparison or qualification.

Visual 8 - Dual-capacity rule

ONE PERSON

|
+--> Governor of State: ordinarily works within Part VI + State CoM
|
+--> Administrator of adjoining UT: acts independently of State CoM

- [FACT] Article 239(2) permits the President to appoint the Governor of a State as Administrator of an adjoining UT.
- [FACT] In that UT capacity, the Governor acts independently of the State Council of Ministers.
- [ANALYSIS] Constitutional capacity, not personal identity, determines whose advice controls.
- [LIMIT] This rule does not make the adjoining State government responsible for the UT.

CLOSING RECALL FLOW - A STATE GOVERNOR MAY ADMINISTER AN ADJOINING UT

START / CONCEPT: A STATE GOVERNOR MAY ADMINISTER AN ADJOINING UT

|
v

EXACT TERMS: GOVERNOR • ADMINISTER • ADJOINING • person • can

|
v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to how one person can act separately as State Governor and adjoining Union Territory Administrator.

|
v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in a state governor may administer an adjoining ut.

|
v

UPSC TRAP / ANSWER-USE: Do not generalise a state governor may administer an adjoining ut beyond its exact Article, statute, territorial field or dated legal status.

|
v

ANSWER-GRABBING FORMULATION: A State Governor May Administer An Adjoining Ut is best understood as how one person can act separately as State Governor and adjoining Union Territory Administrator.

SESSION 9 - PARLIAMENT'S PLENARY UT COMPETENCE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Parliament'S Plenary Ut Competence explains Parliament's continuing power to legislate on every list for territory not included in a State.

Technical definition: Parliament'S Plenary Ut Competence operates through Parliament's continuing power to legislate on every list for territory not included in a State, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Parliament's Plenary Ut Competence is best understood as Parliament's continuing power to legislate on every list for territory not included in a State.

MUST-WRITE KEYWORDS

- **PARLIAMENT**
- **PLENARY**
- **COMPETENCE**
- **continuing**
- **power**
- **legislate**
- **every**

How to use them: Frame the answer through PARLIAMENT; define PLENARY, connect COMPETENCE with continuing to explain the mechanism, and use power for the decisive comparison or qualification.

Visual 9 - Article 246(4) law-making map

STATE

- List I -> Parliament
- List II -> State Legislature
- List III -> both, subject to supremacy rules

UNION TERRITORY

- Parliament -> List I + List II + List III
- local Assembly, if any -> only the field granted by Constitution/statute

- [FACT] Article 246(4) authorises Parliament to make laws on any matter for territory not included in a State, even if the matter lies in the State List.
- [FACT] This competence continues for Delhi, Puducherry and J&K despite their Assemblies.
- [ANALYSIS] A UT legislature has granted competence; Parliament has continuing constitutional competence.
- [LIMIT] Continuing competence does not mean every parliamentary law automatically displaces every local law; the applicable repugnancy and assent provisions must be examined.

CLOSING RECALL FLOW - PARLIAMENT'S PLENARY UT COMPETENCE

START / CONCEPT: PARLIAMENT'S PLENARY UT COMPETENCE

|
v

EXACT TERMS: PARLIAMENT · PLENARY · COMPETENCE · continuing · power · legislate · every

|
v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Parliament's continuing power to legislate on every list for territory not included in a State.

|
v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in parliament's plenary ut competence.

|
v

UPSC TRAP / ANSWER-USE: Do not generalise parliament's plenary ut competence beyond its exact Article, statute, territorial field or dated legal status.

|
v

ANSWER-GRABBING FORMULATION: Parliament's Plenary Ut Competence is best understood as Parliament's continuing power to legislate on every list for territory not included in a State.

SESSION 10 - THREE GOVERNMENTAL MODELS, NOT ONE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Three Governmental Models, Not One explains the distinct direct, statutory-legislature and Delhi constitutional models of Union Territory government.

Technical definition: Three Governmental Models, Not One operates through the distinct direct, statutory-legislature and Delhi constitutional models of Union Territory government, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Three Governmental Models, Not One is best understood as the distinct direct, statutory-legislature and Delhi constitutional models of Union Territory government.

MUST-WRITE KEYWORDS

- THREE
- GOVERNMENTAL
- MODELS
- NOT
- distinct
- direct
- statutory

How to use them: Frame the answer through THREE; define GOVERNMENTAL, connect MODELS with NOT to explain the mechanism, and use distinct for the decisive comparison or qualification.

THREE GOVERNMENTAL MODELS, NOT ONE

AXIS 1

- Does the UT have a legislature?
- Art 239 Which legal basis?
- model +--- Delhi: Article 239AA

AXIS 2

- Puducherry: Article 239A + 1963 Act
- J&K: 2019 Act + s.13 application of Article 239A
- [FACT] Five UTs presently have no legislature; three have legislatures.

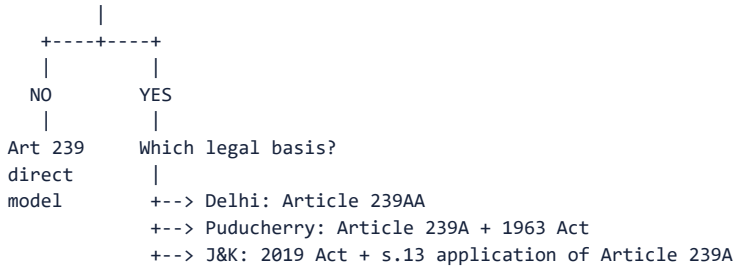
AXIS 3

- [ANALYSIS] A good answer classifies first and compares second.
- [LIMIT] "With legislature" still does not create identical legislative fields, appointment rules or LG powers.

Topic-specific visual map: Three governmental models, not one.

Visual 10 - Classification decision tree

Does the UT have a legislature?



- [FACT] Five UTs presently have no legislature; three have legislatures.
- [ANALYSIS] A good answer classifies first and compares second.
- [LIMIT] "With legislature" still does not create identical legislative fields, appointment rules or LG powers.

CLOSING RECALL FLOW - THREE GOVERNMENTAL MODELS, NOT ONE

START / CONCEPT: THREE GOVERNMENTAL MODELS, NOT ONE

EXACT TERMS: THREE · GOVERNMENTAL · MODELS · NOT · distinct · direct · statutory

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to the distinct direct, statutory-legislature and Delhi constitutional models of Union Territory government.

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in three governmental models, not one.

UPSC TRAP / ANSWER-USE: Do not generalise three governmental models, not one beyond its exact Article, statute, territorial field or dated legal status.

ANSWER-GRABBING FORMULATION: Three Governmental Models, Not One is best understood as the distinct direct, statutory-legislature and Delhi constitutional models of Union Territory government.

SESSION 11 - ARTICLE 239A: ENABLING LOCAL GOVERNMENT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 239A: Enabling Local Government explains Parliament's Article 239A power to create Puducherry's statutory legislature and Council of Ministers.

Technical definition: Article 239A: Enabling Local Government operates through Parliament's Article 239A power to create Puducherry's statutory legislature and Council of Ministers, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 239A: Enabling Local Government is best understood as Parliament's Article 239A power to create Puducherry's statutory legislature and Council of Ministers.

MUST-WRITE KEYWORDS

- ARTICLE
- 239A
- ENABLING
- LOCAL
- GOVERNMENT
- Parliament
- power

How to use them: Frame the answer through ARTICLE; define 239A, connect ENABLING with LOCAL to explain the mechanism, and use GOVERNMENT for the decisive comparison or qualification.

Visual 11 - Article 239A architecture

ARTICLE 239A

|
Parliament may by law create for Puducherry:
|
+--> elected or partly nominated legislature
+--> Council of Ministers
+--> or both
|
law may specify constitution + powers + functions

- [FACT] Article 239A currently names Puducherry and permits Parliament to create a partly nominated and partly elected legislature and/or CoM.
- [FACT] A law under Article 239A is not deemed an Article 368 amendment even if it amends or has the effect of amending the Constitution.
- [FACT] The Government of Union Territories Act, 1963 operationalises the Puducherry model.
- [FACT] Section 13 of the J&K Reorganisation Act, 2019 applies the provisions of Article 239A to J&K.
- [ANALYSIS] Puducherry's legislature is constitutionally enabled but statutorily constituted; Delhi's Assembly is itself written into Article 239AA.

CLOSING RECALL FLOW - ARTICLE 239A: ENABLING LOCAL GOVERNMENT

START / CONCEPT: ARTICLE 239A: ENABLING LOCAL GOVERNMENT

|
v
EXACT TERMS: ARTICLE • 239A • ENABLING • LOCAL • GOVERNMENT • Parliament • power

|
v
MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Parliament's Article 239A power to create Puducherry's statutory legislature and Council of Ministers.

|
v
CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in article 239a: enabling local government.

|
v
UPSC TRAP / ANSWER-USE: Do not generalise article 239a: enabling local government beyond its exact Article, statute, territorial field or dated legal status.

|
v
ANSWER-GRABBING FORMULATION: Article 239A: Enabling Local Government is best understood as Parliament's Article 239A power to create Puducherry's statutory legislature and Council of Ministers.

SESSION 12 - ARTICLE 239B: ORDINANCE POWER

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 239B: Ordinance Power explains Puducherry's recess ordinance procedure and prior presidential-instruction requirement under Article 239B.

Technical definition: Article 239B: Ordinance Power operates through Puducherry's recess ordinance procedure and prior presidential-instruction requirement under Article 239B, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 239B: Ordinance Power is best understood as Puducherry's recess ordinance procedure and prior presidential-instruction requirement under Article 239B.

MUST-WRITE KEYWORDS

- ARTICLE
- 239B
- ORDINANCE
- POWER
- Puducherry
- recess
- procedure

How to use them: Frame the answer through ARTICLE; define 239B, connect ORDINANCE with POWER to explain the mechanism, and use Puducherry for the decisive comparison or qualification.

Visual 12 - Puducherry ordinance cycle

Legislature not in session
|
Administrator finds immediate action necessary
|
prior instructions from President
|
Ordinance promulgated
|
laid before Legislature
|
ceases six weeks after reassembly unless earlier disapproved

- [FACT] Article 239B gives the Administrator of Puducherry ordinance power during recess, subject to prior presidential instructions.
- [FACT] No ordinance may be promulgated while the Legislature is dissolved or its functioning is suspended.
- [FACT] Article 239AA(8) applies Article 239B, so far as may be, to Delhi with textual substitutions.
- [FACT] J&K has a separate ordinance provision in section 52 of the 2019 Act, limited to matters within Assembly competence.
- [LIMIT] An ordinance is not a substitute for Article 240 presidential regulation; the institutions, trigger and legal route differ.

CLOSING RECALL FLOW - ARTICLE 239B: ORDINANCE POWER

START / CONCEPT: ARTICLE 239B: ORDINANCE POWER

|

v

EXACT TERMS: ARTICLE • 239B • ORDINANCE • POWER • Puducherry • recess • procedure

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Puducherry's recess ordinance procedure and prior presidential-instruction requirement under Article 239B.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in article 239b: ordinance power.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise article 239b: ordinance power beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Article 239B: Ordinance Power is best understood as Puducherry's recess ordinance procedure and prior presidential-instruction requirement under Article 239B.

SESSION 13 - ARTICLE 240: PRESIDENTIAL REGULATIONS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 240: Presidential Regulations explains direct presidential regulations for specified territories and Puducherry's conditional Article 240 route.

Technical definition: Article 240: Presidential Regulations operates through direct presidential regulations for specified territories and Puducherry's conditional Article 240 route, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

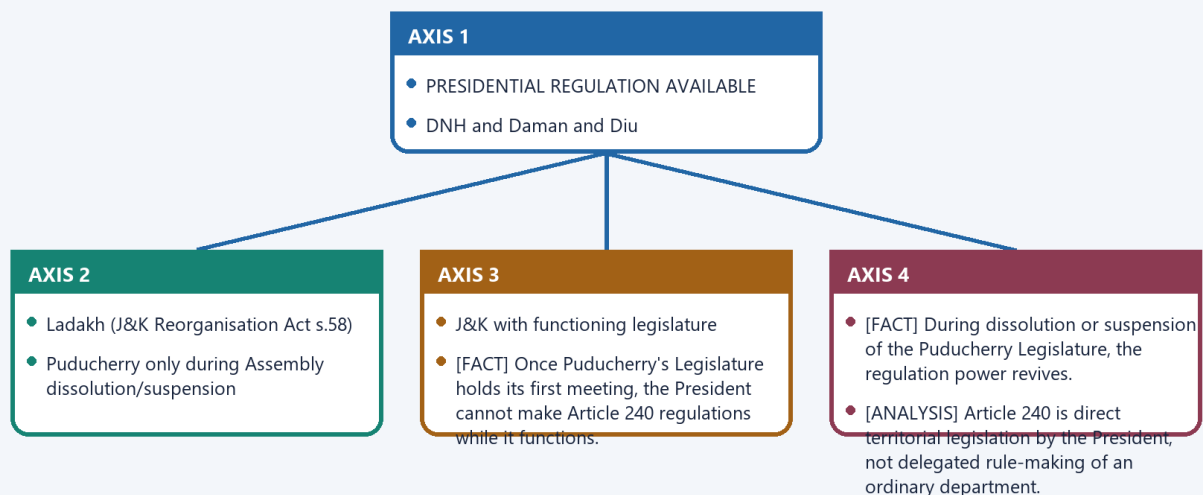
Article 240: Presidential Regulations is best understood as direct presidential regulations for specified territories and Puducherry's conditional Article 240 route.

MUST-WRITE KEYWORDS

- **ARTICLE**
- **PRESIDENTIAL**
- **REGULATIONS**
- **direct**
- **specified**
- **Puducherry**

How to use them: Frame the answer through **ARTICLE**; define **PRESIDENTIAL**, connect **REGULATIONS** with **direct** to explain the mechanism, and use **specified** for the decisive comparison or qualification.

ARTICLE 240: PRESIDENTIAL REGULATIONS



Topic-specific visual map: Article 240: presidential regulations.

Visual 13 - Regulation power filter

PRESIDENTIAL REGULATION AVAILABLE

A&N Islands
Lakshadweep
DNH and Daman and Diu
Ladakh (J&K Reorganisation Act s.58)
Puducherry only during Assembly dissolution/suspension

NOT THIS ROUTE

Chandigarh
Delhi
J&K with functioning legislature

- [FACT] Article 240 expressly covers A&N, Lakshadweep, DNHDD and Puducherry; section 58(2) of the 2019 Act applies the regulation route to Ladakh.
- [FACT] Once Puducherry's Legislature holds its first meeting, the President cannot make Article 240 regulations while it functions.
- [FACT] During dissolution or suspension of the Puducherry Legislature, the regulation power revives.
- [FACT] A regulation may repeal or amend an applicable parliamentary Act or other law and has the force and effect of an Act of Parliament for that territory.
- [ANALYSIS] Article 240 is direct territorial legislation by the President, not delegated rule-making of an ordinary department.
- [LIMIT] Chandigarh's omission is a deliberate close-option trap.

CLOSING RECALL FLOW - ARTICLE 240: PRESIDENTIAL REGULATIONS

START / CONCEPT: ARTICLE 240: PRESIDENTIAL REGULATIONS

|

v

EXACT TERMS: ARTICLE • PRESIDENTIAL • REGULATIONS • direct • specified • Puducherry

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to direct presidential regulations for specified territories and Puducherry's conditional Article 240 route.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in article 240: presidential regulations.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise article 240: presidential regulations beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Article 240: Presidential Regulations is best understood as direct presidential regulations for specified territories and Puducherry's conditional Article 240 route.

SESSION 14 - ARTICLE 241: HIGH COURTS FOR UTS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 241: High Courts For Uts explains Parliament's Article 241 choices for constituting or assigning High Court jurisdiction.

Technical definition: Article 241: High Courts For Uts operates through Parliament's Article 241 choices for constituting or assigning High Court jurisdiction, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 241: High Courts For Uts is best understood as Parliament's Article 241 choices for constituting or assigning High Court jurisdiction.

MUST-WRITE KEYWORDS

- ARTICLE
- HIGH

- COURTS
- UTS
- Parliament
- choices

How to use them: Frame the answer through ARTICLE; define HIGH, connect COURTS with UTS to explain the mechanism, and use Parliament for the decisive comparison or qualification.

ARTICLE 241: HIGH COURTS FOR UTS

AXIS 1

- constitute a High Court for a UT
- declare a court in the UT to be a High Court

AXIS 2

- extend a State High Court's jurisdiction to a UT
- exclude such jurisdiction by law

AXIS 3

- [FACT] Article 241 authorises Parliament to constitute a High Court for a UT or declare a court there to be a High Court.
- [FACT] Chapter V of Part VI applies to such a High Court subject to statutory modifications or exceptions.

AXIS 4

- [FACT] Article 241(4) preserves Parliament's power to extend or exclude a State High Court's jurisdiction to or from a UT.
- [ANALYSIS] Judicial coverage is mandatory in effect, but a separate territorial High Court is not.

Topic-specific visual map: Article 241: High Courts for UTs.

Visual 14 - Judicial allocation choices

PARLIAMENT MAY

```

|
+--> constitute a High Court for a UT
|
+--> declare a court in the UT to be a High Court
|
+--> extend a State High Court's jurisdiction to a UT
|
+--> exclude such jurisdiction by law

```

- [FACT] Article 241 authorises Parliament to constitute a High Court for a UT or declare a court there to be a High Court.
- [FACT] Chapter V of Part VI applies to such a High Court subject to statutory modifications or exceptions.
- [FACT] Article 241(4) preserves Parliament's power to extend or exclude a State High Court's jurisdiction to or from a UT.
- [ANALYSIS] Judicial coverage is mandatory in effect, but a separate territorial High Court is not.

CLOSING RECALL FLOW - ARTICLE 241: HIGH COURTS FOR UTS

START / CONCEPT: ARTICLE 241: HIGH COURTS FOR UTS

|

v

EXACT TERMS: ARTICLE • HIGH • COURTS • UTS • Parliament • choices

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Parliament's Article 241 choices for constituting or assigning High Court jurisdiction.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in article 241: high courts for uts.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise article 241: high courts for uts beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Article 241: High Courts For Uts is best understood as Parliament's Article 241 choices for constituting or assigning High Court jurisdiction.

SESSION 15 - CURRENT HIGH COURT ARRANGEMENTS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Current High Court Arrangements explains Delhi's exclusive High Court, the J&K-Ladakh common court and five State-High-Court assignments.

Technical definition: Current High Court Arrangements operates through Delhi's exclusive High Court, the J&K-Ladakh common court and five State-High-Court assignments, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Current High Court Arrangements is best understood as Delhi's exclusive High Court, the J&K-Ladakh common court and five State-High-Court assignments.

MUST-WRITE KEYWORDS

- HIGH
- COURT
- ARRANGEMENTS
- Delhi
- exclusive
- J&K
- Ladakh

How to use them: Frame the answer through HIGH; define COURT, connect ARRANGEMENTS with Delhi to explain the mechanism, and use exclusive for the decisive comparison or qualification.

Visual 15 - UT judicial matrix

Union Territory	High Court arrangement
NCT Delhi	Delhi High Court - separate High Court
Andaman and Nicobar Islands	Calcutta High Court; circuit arrangements at Port Blair
Chandigarh	Punjab and Haryana High Court
DNH and Daman and Diu	Bombay High Court
Lakshadweep	Kerala High Court
Puducherry	Madras High Court
Jammu and Kashmir	High Court of Jammu & Kashmir and Ladakh
Ladakh	High Court of Jammu & Kashmir and Ladakh

- [CURRENT] Delhi remains the only UT with a separate High Court of its own.
- [CURRENT] The common court's official current name is the **High Court of Jammu & Kashmir and Ladakh**.
- [LIMIT] A circuit bench is not a separate High Court.

CLOSING RECALL FLOW - CURRENT HIGH COURT ARRANGEMENTS

START / CONCEPT: CURRENT HIGH COURT ARRANGEMENTS

|

v

EXACT TERMS: HIGH • COURT • ARRANGEMENTS • Delhi • exclusive • J&K • Ladakh

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Delhi's exclusive High Court, the J&K-Ladakh common court and five State-High-Court assignments.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in current high court arrangements.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise current high court arrangements beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Current High Court Arrangements is best understood as Delhi's exclusive High Court, the J&K-Ladakh common court and five State-High-Court assignments.

SESSION 16 - UTS WITHOUT LEGISLATURES: COMMON ARCHITECTURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Uts Without Legislatures: Common Architecture explains the common presidential-administration framework of the five Union Territories without legislatures.

Technical definition: Uts Without Legislatures: Common Architecture operates through the common presidential-administration framework of the five Union Territories without legislatures, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Uts Without Legislatures: Common Architecture is best understood as the common presidential-administration framework of the five Union Territories without legislatures.

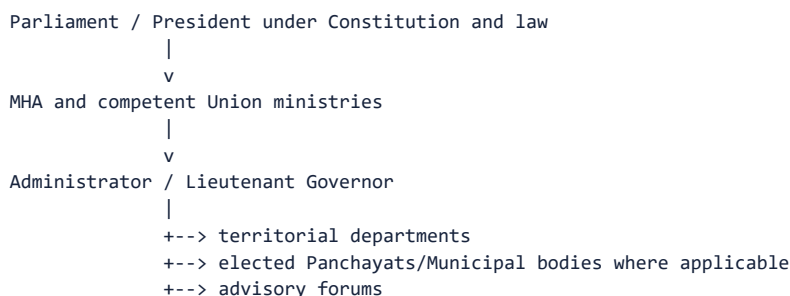
MUST-WRITE KEYWORDS

- UTS
- WITHOUT

- LEGISLATURES
- COMMON
- ARCHITECTURE
- presidential
- administration

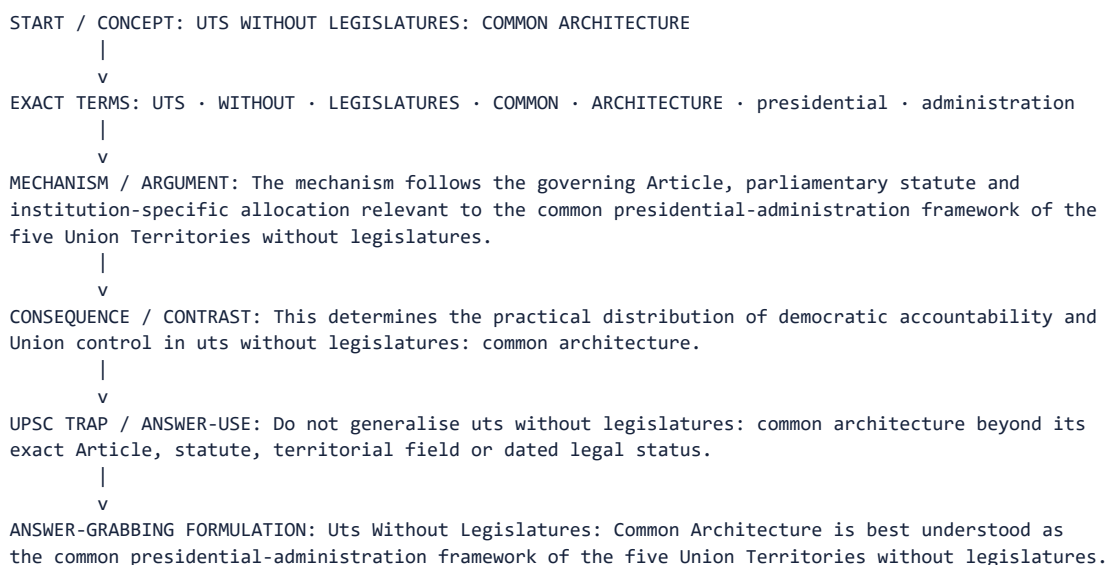
How to use them: Frame the answer through UTS; define WITHOUT, connect LEGISLATURES with COMMON to explain the mechanism, and use ARCHITECTURE for the decisive comparison or qualification.

Visual 16 - Direct-administration workflow



- [FACT] A UT without a legislature is not governed by a local State-type Cabinet.
- [FACT] Parliament can legislate; the President may use Article 240 where legally available; administrators implement the applicable framework.
- [ANALYSIS] Local bodies can provide representation without becoming a territorial legislature.
- [LIMIT] Advisory committees and local bodies cannot be described as substitutes for a Legislative Assembly.

CLOSING RECALL FLOW - UTS WITHOUT LEGISLATURES: COMMON ARCHITECTURE



SESSION 17 - ANDAMAN AND NICOBAR ISLANDS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Andaman And Nicobar Islands explains Andaman and Nicobar Islands as a strategic archipelago under Lieutenant-Governor administration.

Technical definition: Andaman And Nicobar Islands operates through Andaman and Nicobar Islands as a strategic archipelago under Lieutenant-Governor administration, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Andaman And Nicobar Islands is best understood as Andaman and Nicobar Islands as a strategic archipelago under Lieutenant-Governor administration.

MUST-WRITE KEYWORDS

- **ANDAMAN**
- **NICOBAR**
- **ISLANDS**
- **strategic**
- **archipelago**
- **Lieutenant**
- **Governor**

How to use them: Frame the answer through ANDAMAN; define NICOBAR, connect ISLANDS with strategic to explain the mechanism, and use archipelago for the decisive comparison or qualification.

Visual 17 - Island administration profile

Dimension	Control
legislature	none
executive	Lieutenant Governor under Article 239
direct law route	Article 240 regulations available
High Court	Calcutta High Court
rationale	strategic archipelago, maritime administration and dispersed islands

- [FACT] A&N is a UT without a legislature and is expressly named in Article 240.
- [ANALYSIS] Its administrative design reflects the need to coordinate strategic, environmental, tribal-protection and connectivity concerns.
- [LIMIT] Strategic importance does not justify treating protected communities or environmental safeguards as administratively expendable.

CLOSING RECALL FLOW - ANDAMAN AND NICOBAR ISLANDS

START / CONCEPT: ANDAMAN AND NICOBAR ISLANDS

|

v

EXACT TERMS: ANDAMAN • NICOBAR • ISLANDS • strategic • archipelago • Lieutenant • Governor

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Andaman and Nicobar Islands as a strategic archipelago under Lieutenant-Governor administration.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in andaman and nicobar islands.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise andaman and nicobar islands beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Andaman And Nicobar Islands is best understood as Andaman and Nicobar Islands as a strategic archipelago under Lieutenant-Governor administration.

SESSION 18 - LAKSHADWEEP

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Lakshadweep explains Lakshadweep as a small island Union Territory assigned to the Kerala High Court.

Technical definition: Lakshadweep operates through Lakshadweep as a small island Union Territory assigned to the Kerala High Court, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Lakshadweep is best understood as Lakshadweep as a small island Union Territory assigned to the Kerala High Court.

MUST-WRITE KEYWORDS

- LAKSHADWEEP
- small
- island
- assigned
- Kerala
- High
- Court

How to use them: Frame the answer through LAKSHADWEEP; define small, connect island with assigned to explain the mechanism, and use Kerala for the decisive comparison or qualification.

Visual 18 - Small-island governance chain

small dispersed islands
|
ecological carrying capacity + connectivity + local livelihood
|
Administrator under Article 239
|
Article 240 regulation route
|
Kerala High Court jurisdiction

- [FACT] Lakshadweep has no legislature, is administered by an Administrator and is covered by Article 240.
- [ANALYSIS] Small-island governance requires legal sensitivity to ecology and livelihood, not merely administrative uniformity.
- [LIMIT] Policy controversy should be analysed through statutory power, consultation, rights and proportionality; do not assume that direct administration eliminates judicial review.

CLOSING RECALL FLOW - LAKSHADWEEP

START / CONCEPT: LAKSHADWEEP

|

v

EXACT TERMS: LAKSHADWEEP · small · island · assigned · Kerala · High · Court

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Lakshadweep as a small island Union Territory assigned to the Kerala High Court.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in lakshadweep.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise lakshadweep beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Lakshadweep is best understood as Lakshadweep as a small island Union Territory assigned to the Kerala High Court.

SESSION 19 - CHANDIGARH

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Chandigarh explains Chandigarh's direct administration, shared-capital role and Punjab and Haryana High Court jurisdiction.

Technical definition: Chandigarh operates through Chandigarh's direct administration, shared-capital role and Punjab and Haryana High Court jurisdiction, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Chandigarh is best understood as Chandigarh's direct administration, shared-capital role and Punjab and Haryana High Court jurisdiction.

MUST-WRITE KEYWORDS

- CHANDIGARH
- direct
- administration
- shared
- capital
- role
- Punjab

How to use them: Frame the answer through CHANDIGARH; define direct, connect administration with shared to explain the mechanism, and use capital for the decisive comparison or qualification.

Visual 19 - Shared-capital distinction

Feature	Position
territorial status	Union Territory
legislature	none
executive	Administrator
High Court	Punjab and Haryana High Court
Article 240	not included
State relationship	serves as capital of Punjab and Haryana but is not governed by either State legislature

- [FACT] Chandigarh's capital role does not convert it into a State territory.
- [FACT] The Punjab and Haryana High Court has jurisdiction over Chandigarh.
- [ANALYSIS] The arrangement separates territorial administration from shared-capital functions.
- [LIMIT] A Punjab Governor appointed as Chandigarh Administrator acts in the UT capacity independently of the Punjab Council of Ministers.

CLOSING RECALL FLOW - CHANDIGARH

START / CONCEPT: CHANDIGARH

|

v

EXACT TERMS: CHANDIGARH • direct • administration • shared • capital • role • Punjab

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Chandigarh's direct administration, shared-capital role and Punjab and Haryana High Court jurisdiction.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in Chandigarh.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise Chandigarh beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Chandigarh is best understood as Chandigarh's direct administration, shared-capital role and Punjab and Haryana High Court jurisdiction.

SESSION 20 - DADRA AND NAGAR HAVELI AND DAMAN AND DIU

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Dadra And Nagar Haveli And Daman And Diu explains the 2020 merger and Bombay High Court jurisdiction of Dadra and Nagar Haveli and Daman and Diu.

Technical definition: Dadra And Nagar Haveli And Daman And Diu operates through the 2020 merger and Bombay High Court jurisdiction of Dadra and Nagar Haveli and Daman and Diu, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Dadra And Nagar Haveli And Daman And Diu is best understood as the 2020 merger and Bombay High Court jurisdiction of Dadra and Nagar Haveli and Daman and Diu.

MUST-WRITE KEYWORDS

- DADRA
- NAGAR
- HAVELI

- DAMAN
- DIU
- merger

How to use them: Frame the answer through DADRA; define NAGAR, connect HAVELI with DAMAN to explain the mechanism, and use DIU for the decisive comparison or qualification.

Visual 20 - Merger control

DNH (separate UT) + Daman and Diu (separate UT)

Merger of Union Territories Act, 2019

appointed day: 26 January 2020

single UT: Dadra and Nagar Haveli and Daman and Diu

- [FACT] The 2019 merger Act created one UT from the two earlier UTs.
- [FACT] It has no legislature, is administered by an Administrator, is covered by Article 240 and falls under Bombay High Court jurisdiction.
- [ANALYSIS] Administrative consolidation can reduce duplication, but geographic separation still creates coordination costs.
- [LIMIT] The merged name must be used; treating DNH and Daman and Diu as two current UTs produces the stale count of nine.

CLOSING RECALL FLOW - DADRA AND NAGAR HAVELI AND DAMAN AND DIU

START / CONCEPT: DADRA AND NAGAR HAVELI AND DAMAN AND DIU

EXACT TERMS: DADRA • NAGAR • HAVELI • DAMAN • DIU • merger

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to the 2020 merger and Bombay High Court jurisdiction of Dadra and Nagar Haveli and Daman and Diu.

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in dadra and nagar haveli and daman and diu.

UPSC TRAP / ANSWER-USE: Do not generalise dadra and nagar haveli and daman and diu beyond its exact Article, statute, territorial field or dated legal status.

ANSWER-GRABBING FORMULATION: Dadra And Nagar Haveli And Daman And Diu is best understood as the 2020 merger and Bombay High Court jurisdiction of Dadra and Nagar Haveli and Daman and Diu.

SESSION 21 - LADAKH

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Ladakh explains Ladakh's legislature-free statutory design, presidential-regulation route and current safeguard demands.

Technical definition: Ladakh operates through Ladakh's legislature-free statutory design, presidential-regulation route and current safeguard demands, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Ladakh is best understood as Ladakh's legislature-free statutory design, presidential-regulation route and current safeguard demands.

MUST-WRITE KEYWORDS

- LADAKH

- legislature
- free
- statutory
- design
- presidential
- regulation

How to use them: Frame the answer through LADAKH; define legislature, connect free with statutory to explain the mechanism, and use design for the decisive comparison or qualification.

Visual 21 - Ladakh's present institutional model

```

J&K Reorganisation Act, 2019
|
v
LADAKH UT WITHOUT LEGISLATURE
|
President -> Lieutenant Governor
|
Article 240 regulation route through section 58
|
High Court of Jammu & Kashmir and Ladakh

```

- [FACT] Section 58 of the 2019 Act places Ladakh under a Lieutenant Governor, permits Article 240 regulations and provides Union-appointed advisers.
- [CURRENT] Ladakh remains a UT without a legislature.
- [CURRENT] Statehood, Sixth Schedule and other safeguard demands remain political-negotiation issues; no enacted change was located by the control date.
- [ANALYSIS] Ladakh illustrates the tension between frontier strategy, ecological fragility, tribal representation and demand for local law-making.
- [LIMIT] A demand, committee discussion or Union assurance is not current constitutional status.

CLOSING RECALL FLOW - LADAKH

```

START / CONCEPT: LADAKH
|
v
EXACT TERMS: LADAKH · legislature · free · statutory · design · presidential · regulation
|
v
MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and
institution-specific allocation relevant to Ladakh's legislature-free statutory design,
presidential-regulation route and current safeguard demands.
|
v
CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and
Union control in ladakh.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise ladakh beyond its exact Article, statute, territorial
field or dated legal status.
|
v
ANSWER-GRABBING FORMULATION: Ladakh is best understood as Ladakh's legislature-free statutory
design, presidential-regulation route and current safeguard demands.

```

SESSION 22 - THE THREE UT LEGISLATURES COMPARED

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Three Ut Legislatures Compared explains how Delhi, Puducherry and Jammu and Kashmir differ in legal source, fields and Administrator control.

Technical definition: The Three Ut Legislatures Compared operates through how Delhi, Puducherry and Jammu and Kashmir differ in legal source, fields and Administrator control, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

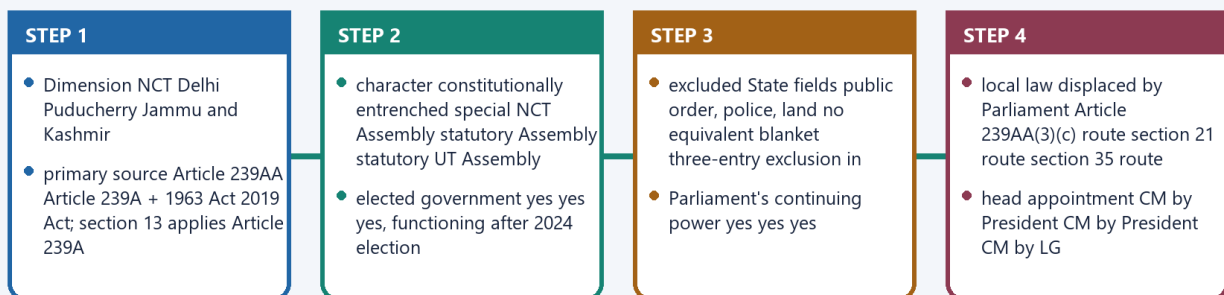
The Three Ut Legislatures Compared is best understood as how Delhi, Puducherry and Jammu and Kashmir differ in legal source, fields and Administrator control.

MUST-WRITE KEYWORDS

- THREE
- LEGISLATURES
- COMPARED
- Delhi
- Puducherry
- Jammu
- Kashmir

How to use them: Frame the answer through THREE; define LEGISLATURES, connect COMPARED with Delhi to explain the mechanism, and use Puducherry for the decisive comparison or qualification.

THE THREE UT LEGISLATURES COMPARED



Topic-specific visual map: The three UT legislatures compared.

Visual 22 - Legal-basis matrix

Dimension	NCT Delhi	Puducherry	Jammu and Kashmir
primary source	Article 239AA	Article 239A + 1963 Act	2019 Act; section 13 applies Article 239A
character	constitutionally entrenched special NCT Assembly	statutory Assembly	statutory UT Assembly
elected government	yes	yes	yes, functioning after 2024 election
ordinary legislative field	State + Concurrent Lists subject to exclusions	State + Concurrent Lists as applicable to UTs	State + Concurrent Lists subject to exclusions
excluded State fields	public order, police, land	no equivalent blanket three-entry exclusion in section 18	public order and police
Parliament's continuing power	yes	yes	yes
local law displaced by Parliament	Article 239AA(3)(c) route	section 21 route	section 35 route
head appointment	CM by President	CM by President	CM by LG

- [FACT] J&K's land field is not excluded in section 32, unlike Delhi.
- [FACT] All three Councils are collectively responsible to their Assemblies.
- [ANALYSIS] The phrase "UT with legislature" describes a family, not a uniform constitution.

CLOSING RECALL FLOW - THE THREE UT LEGISLATURES COMPARED

START / CONCEPT: THE THREE UT LEGISLATURES COMPARED

|

v

EXACT TERMS: THREE • LEGISLATURES • COMPARED • Delhi • Puducherry • Jammu • Kashmir

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to how Delhi, Puducherry and Jammu and Kashmir differ in legal source, fields and Administrator control.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in the three ut legislatures compared.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise the three ut legislatures compared beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: The Three Ut Legislatures Compared is best understood as how Delhi, Puducherry and Jammu and Kashmir differ in legal source, fields and Administrator control.

SESSION 23 - DELHI'S CONSTITUTIONAL EVOLUTION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Delhi'S Constitutional Evolution explains Delhi's transition to the Article 239AA National Capital Territory model through the 69th Amendment.

Technical definition: Delhi'S Constitutional Evolution operates through Delhi's transition to the Article 239AA National Capital Territory model through the 69th Amendment, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Delhi'S Constitutional Evolution is best understood as Delhi's transition to the Article 239AA National Capital Territory model through the 69th Amendment.

MUST-WRITE KEYWORDS

- DELHI
- CONSTITUTIONAL
- EVOLUTION
- transition
- Article
- 239AA
- National

How to use them: Frame the answer through DELHI; define CONSTITUTIONAL, connect EVOLUTION with transition to explain the mechanism, and use Article for the decisive comparison or qualification.

Visual 23 - Delhi timeline

1956 Union Territory
|
Metropolitan Council / Executive Council phase
|
69th Constitutional Amendment Act, 1991
|
Article 239AA effective 1992
|
NCT Delhi + Legislative Assembly + Council of Ministers
|
2018 Constitution Bench
|
2023 services Constitution Bench
|
GNCTD Amendment Act, 2023 / NCCSA

- [FACT] The 69th Amendment redesignated Delhi as the National Capital Territory and its Administrator as Lieutenant Governor.
- [FACT] Parliament enacted the GNCTD Act, 1991 to supplement Article 239AA.
- [ANALYSIS] Delhi's design attempts to combine a national capital under Union protection with representative government for residents.
- [LIMIT] Delhi remains a UT; "special status" does not mean Statehood.

CLOSING RECALL FLOW - DELHI'S CONSTITUTIONAL EVOLUTION

START / CONCEPT: DELHI'S CONSTITUTIONAL EVOLUTION

|

v

EXACT TERMS: DELHI · CONSTITUTIONAL · EVOLUTION · transition · Article · 239AA · National

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Delhi's transition to the Article 239AA National Capital Territory model through the 69th Amendment.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in Delhi's constitutional evolution.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise Delhi's constitutional evolution beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Delhi's Constitutional Evolution is best understood as Delhi's transition to the Article 239AA National Capital Territory model through the 69th Amendment.

SESSION 24 - ARTICLE 239AA: DELHI'S LEGISLATIVE FIELD

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 239Aa: Delhi'S Legislative Field explains Delhi Assembly competence and the exact public-order, police, land and related-entry exclusions.

Technical definition: Article 239Aa: Delhi'S Legislative Field operates through Delhi Assembly competence and the exact public-order, police, land and related-entry exclusions, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 239Aa: Delhi'S Legislative Field is best understood as Delhi Assembly competence and the exact public-order, police, land and related-entry exclusions.

MUST-WRITE KEYWORDS

- ARTICLE
- 239AA
- DELHI
- LEGISLATIVE
- FIELD
- Assembly
- competence

How to use them: Frame the answer through ARTICLE; define 239AA, connect DELHI with LEGISLATIVE to explain the mechanism, and use FIELD for the decisive comparison or qualification.

ARTICLE 239AA: DELHI'S LEGISLATIVE FIELD

AXIS 1

- STATE LIST / CONCURRENT LIST MATTER
- Is it public order, police or land?
- Delhi Assembly Delhi Assembly

AXIS 2

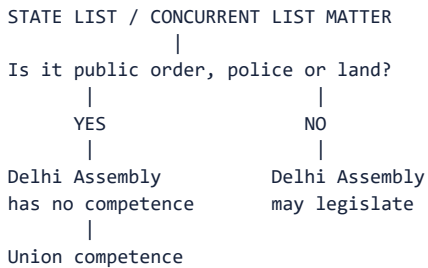
- has no competence may legislate
- At every point: Parliament retains competence for NCT Delhi.
- [FACT] Article 239AA(3)(a) excludes State List Entries 1, 2 and 18 and related Entries 64, 65 and 66.

AXIS 3

- [FACT] Article 239AA(3)(b) preserves Parliament's power over any NCT matter.
- [FACT] Delhi's Assembly seats are directly elected; Parliament regulates total seats and functioning by law.

Topic-specific visual map: Article 239AA: Delhi's legislative field.

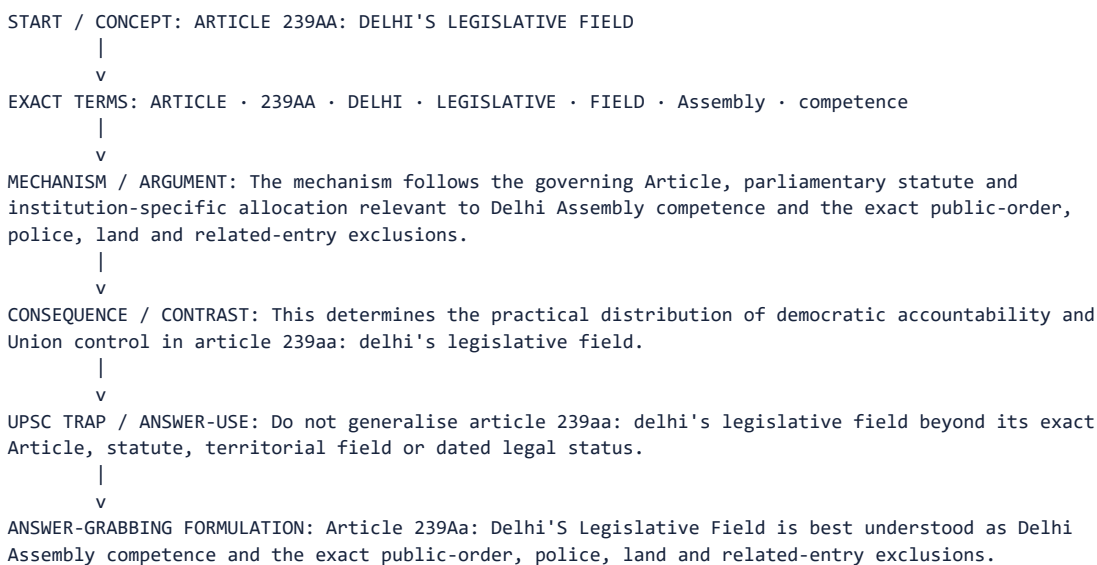
Visual 24 - Delhi competence filter



At every point: Parliament retains competence for NCT Delhi.

- [FACT] Article 239AA(3)(a) excludes State List Entries 1, 2 and 18 and related Entries 64, 65 and 66.
- [FACT] Article 239AA(3)(b) preserves Parliament's power over any NCT matter.
- [FACT] Delhi's Assembly seats are directly elected; Parliament regulates total seats and functioning by law.
- [FACT] Article 239AA(4) limits the CoM to not more than ten per cent of Assembly strength.
- [LIMIT] "Police" does not mean every service officer; the 2023 services case addressed Entry 41 separately.

CLOSING RECALL FLOW - ARTICLE 239AA: DELHI'S LEGISLATIVE FIELD



SESSION 25 - DELHI: PARLIAMENTARY OVERRIDE AND REPUGNANCY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Delhi: Parliamentary Override And Repugnancy explains Parliamentary supremacy, repugnancy and presidential-assent rules within Delhi's concurrent law-making sphere.

Technical definition: Delhi: Parliamentary Override And Repugnancy operates through Parliamentary supremacy, repugnancy and presidential-assent rules within Delhi's concurrent law-making sphere, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Delhi: Parliamentary Override And Repugnancy is best understood as Parliamentary supremacy, repugnancy and presidential-assent rules within Delhi's concurrent law-making sphere.

MUST-WRITE KEYWORDS

- DELHI
- PARLIAMENTARY
- OVERRIDE
- REPUGNANCY

- **supremacy**
- **presidential**
- **assent**

How to use them: Frame the answer through DELHI; define PARLIAMENTARY, connect OVERRIDE with REPUGNANCY to explain the mechanism, and use supremacy for the decisive comparison or qualification.

Visual 25 - Delhi law-conflict ladder

```

Delhi Assembly law
|
conflict with parliamentary / earlier law
|
Parliamentary or earlier law prevails
|
Exception: reserved Delhi law receives President's assent
|
Even then Parliament may later add, amend, vary or repeal

```

- [FACT] Article 239AA(3)(c) creates the repugnancy rule.
- [FACT] Presidential assent can allow the local law to prevail in Delhi, subject to Parliament's later power.
- [ANALYSIS] Delhi legislative autonomy is real but constitutionally defeasible.
- [LIMIT] "Parliament can override" should be proved through the relevant clause, not used as a slogan that erases the Assembly.

CLOSING RECALL FLOW - DELHI: PARLIAMENTARY OVERRIDE AND REPUGNANCY

```

START / CONCEPT: DELHI: PARLIAMENTARY OVERRIDE AND REPUGNANCY
|
v
EXACT TERMS: DELHI • PARLIAMENTARY • OVERRIDE • REPUGNANCY • supremacy • presidential • assent
|
v
MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and
institution-specific allocation relevant to Parliamentary supremacy, repugnancy and presidential-
assent rules within Delhi's concurrent law-making sphere.
|
v
CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and
Union control in delhi: parliamentary override and repugnancy.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise delhi: parliamentary override and repugnancy beyond its
exact Article, statute, territorial field or dated legal status.
|
v
ANSWER-GRABBING FORMULATION: Delhi: Parliamentary Override And Repugnancy is best understood as
Parliamentary supremacy, repugnancy and presidential-assent rules within Delhi's concurrent law-
making sphere.

```

SESSION 26 - DELHI'S EXECUTIVE: AID, ADVICE AND REFERENCE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Delhi'S Executive: Aid, Advice And Reference explains aid and advice, executive co-extension and the exceptional presidential-reference route under Article 239AA.

Technical definition: Delhi'S Executive: Aid, Advice And Reference operates through aid and advice, executive co-extension and the exceptional presidential-reference route under Article 239AA, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

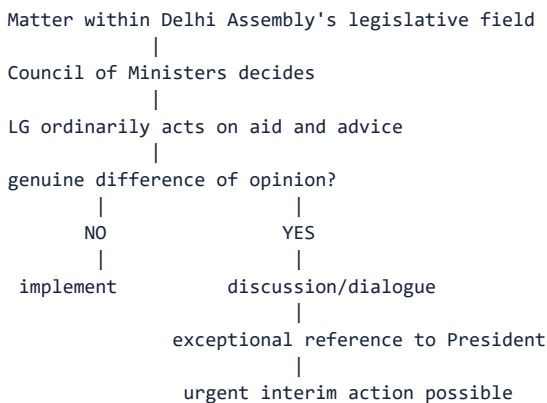
Delhi'S Executive: Aid, Advice And Reference is best understood as aid and advice, executive co-extension and the exceptional presidential-reference route under Article 239AA.

MUST-WRITE KEYWORDS

- DELHI
- EXECUTIVE
- AID
- ADVICE
- REFERENCE
- extension
- exceptional

How to use them: Frame the answer through DELHI; define EXECUTIVE, connect AID with ADVICE to explain the mechanism, and use REFERENCE for the decisive comparison or qualification.

Visual 26 - Article 239AA(4) workflow



- [FACT] The CoM aids and advises the LG in fields where the Assembly can legislate, except where law requires discretion.
- [FACT] The proviso allows reference of a difference to the President and urgent interim action.
- [ANALYSIS] The provision creates a constitutional partnership but also an escalation channel.
- [LIMIT] The text says "any matter"; the 2018 judgment held that this cannot mean "every matter".

CLOSING RECALL FLOW - DELHI'S EXECUTIVE: AID, ADVICE AND REFERENCE

START / CONCEPT: DELHI'S EXECUTIVE: AID, ADVICE AND REFERENCE

|

v

EXACT TERMS: DELHI • EXECUTIVE • AID • ADVICE • REFERENCE • extension • exceptional

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to aid and advice, executive co-extension and the exceptional presidential-reference route under Article 239AA.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in delhi's executive: aid, advice and reference.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise delhi's executive: aid, advice and reference beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Delhi'S Executive: Aid, Advice And Reference is best understood as aid and advice, executive co-extension and the exceptional presidential-reference route under Article 239AA.

SESSION 27 - THE 2018 CONSTITUTION BENCH

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The 2018 Constitution Bench explains how the 2018 Constitution Bench protected representative government within Delhi's allotted field.

Technical definition: The 2018 Constitution Bench operates through how the 2018 Constitution Bench protected representative government within Delhi's allotted field, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

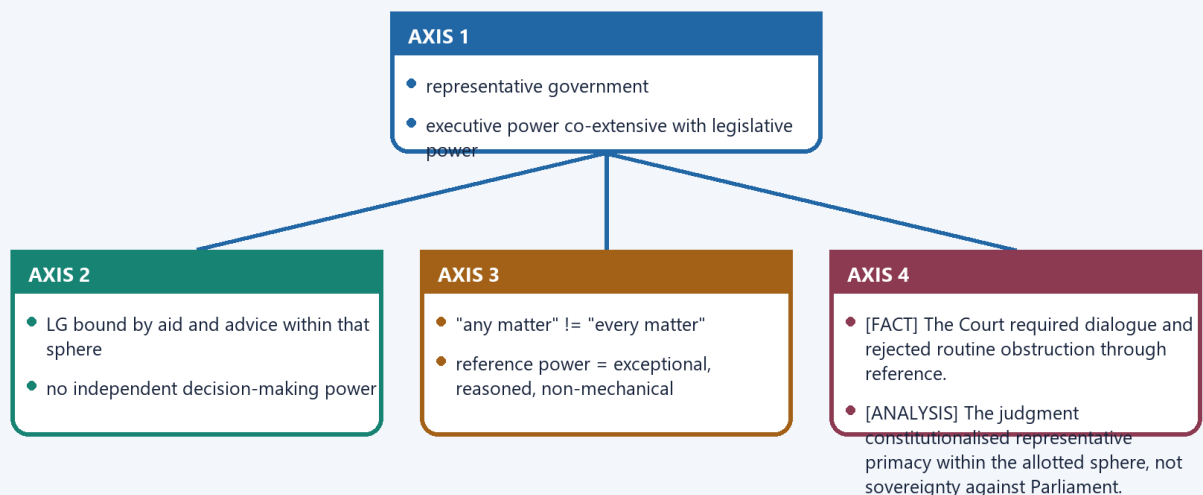
The 2018 Constitution Bench is best understood as how the 2018 Constitution Bench protected representative government within Delhi's allotted field.

MUST-WRITE KEYWORDS

- **CONSTITUTION**
- **BENCH**
- **protected**
- **representative**
- **government**
- **within**

How to use them: Frame the answer through CONSTITUTION; define BENCH, connect protected with representative to explain the mechanism, and use government for the decisive comparison or qualification.

THE 2018 CONSTITUTION BENCH



Topic-specific visual map: The 2018 Constitution Bench.

Visual 27 - 2018 holding chain

representative government
|
executive power co-extensive with legislative power
|
LG bound by aid and advice within that sphere
|
no independent decision-making power
|
"any matter" != "every matter"
|
reference power = exceptional, reasoned, non-mechanical

- [FACT] *Government of NCT of Delhi v. Union of India* (4 July 2018) held that Delhi's executive power follows its legislative field, subject to Constitution and parliamentary law.
- [FACT] The majority said the LG has no independent decision-making power: he acts on aid and advice or implements the President's decision after a valid reference.
- [FACT] The Court required dialogue and rejected routine obstruction through reference.
- [ANALYSIS] The judgment constitutionalised representative primacy within the allotted sphere, not sovereignty against Parliament.
- [LIMIT] It did not permanently settle every allocation dispute; services generated later litigation.

CLOSING RECALL FLOW - THE 2018 CONSTITUTION BENCH

START / CONCEPT: THE 2018 CONSTITUTION BENCH
|
v
EXACT TERMS: CONSTITUTION • BENCH • protected • representative • government • within
|
v
MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to how the 2018 Constitution Bench protected representative government within Delhi's allotted field.
|
v
CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in the 2018 constitution bench.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise the 2018 constitution bench beyond its exact Article, statute, territorial field or dated legal status.
|
v
ANSWER-GRABBING FORMULATION: The 2018 Constitution Bench is best understood as how the 2018 Constitution Bench protected representative government within Delhi's allotted field.

SESSION 28 - THE DELHI SERVICES JUDGMENT (2023)

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Delhi services judgment (2023) explains how the May 2023 Constitution Bench placed services within Delhi's field except reserved subjects.

Technical definition: The Delhi services judgment (2023) operates through how the May 2023 Constitution Bench placed services within Delhi's field except reserved subjects, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Delhi services judgment (2023) is best understood as how the May 2023 Constitution Bench placed services within Delhi's field except reserved subjects.

MUST-WRITE KEYWORDS

- SERVICES
- JUDGMENT
- Constitution

- Bench
- placed

How to use them: Frame the answer through SERVICES; define JUDGMENT, connect Constitution with Bench to explain the mechanism, and use placed for the decisive comparison or qualification.

Visual 28 - Judicial services rule before the later Act

Entry 41: State public services / PSC

|
not one of Delhi's three express exclusions

|
NCTD has legislative power

|
executive power is co-extensive

|
LG bound by elected government's decisions

|
EXCEPT services connected to public order, police and land

- [FACT] The 11 May 2023 Constitution Bench held that NCTD had legislative and executive power over services under Entry 41, excluding the three reserved fields.
- [FACT] It described NCTD as **sui generis**, not identical to other UTs.
- [FACT] It linked officer accountability to the "triple chain" of civil service, ministers, legislature and electorate.
- [ANALYSIS] Control of postings and discipline was treated as necessary for democratic responsibility.
- [LIMIT] This judicial rule was followed by parliamentary legislation; current answers must include the 2023 Act.

CLOSING RECALL FLOW - THE DELHI SERVICES JUDGMENT (2023)

START / CONCEPT: THE DELHI SERVICES JUDGMENT (2023)

|
v
EXACT TERMS: SERVICES • JUDGMENT • Constitution • Bench • placed

|
v
MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to how the May 2023 Constitution Bench placed services within Delhi's field except reserved subjects.

|
v
CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in the Delhi services judgment (2023).

|
v
UPSC TRAP / ANSWER-USE: Do not generalise the Delhi services judgment (2023) beyond its exact Article, statute, territorial field or dated legal status.

|
v
ANSWER-GRABBING FORMULATION: The Delhi services judgment (2023) is best understood as how the May 2023 Constitution Bench placed services within Delhi's field except reserved subjects.

SESSION 29 - GNCTD AMENDMENT ACT, 2023 AND NCCSA

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Gncld Amendment Act, 2023 And Nccsa explains how Act 19 of 2023 created the NCCSA and statutory Lieutenant-Governor primacy on disagreement.

Technical definition: Gncld Amendment Act, 2023 And Nccsa operates through how Act 19 of 2023 created the NCCSA and statutory Lieutenant-Governor primacy on disagreement, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Gncld Amendment Act, 2023 And Nccsa is best understood as how Act 19 of 2023 created the NCCSA and statutory Lieutenant-Governor primacy on disagreement.

MUST-WRITE KEYWORDS

- GNCTD
- AMENDMENT
- ACT
- NCCSA
- created
- statutory

How to use them: Frame the answer through GNCTD; define AMENDMENT, connect ACT with NCCSA to explain the mechanism, and use created for the decisive comparison or qualification.

GNCTD AMENDMENT ACT, 2023 AND NCCSA

AXIS 1

- NATIONAL CAPITAL CIVIL SERVICE AUTHORITY
- Chief Minister: Chairperson

AXIS 2

- Chief Secretary: Member
- Principal Home Secretary: Member-Secretary

AXIS 3

- decisions by majority of members present and voting
- recommendation to Lieutenant Governor

AXIS 4

- LG may accept / seek material / return with written reasons
- continuing disagreement - LG decision final

Topic-specific visual map: GNCTD Amendment Act, 2023 and NCCSA.

Visual 29 - NCCSA decision structure

NATIONAL CAPITAL CIVIL SERVICE AUTHORITY

|

+--> Chief Minister: Chairperson

+--> Chief Secretary: Member

+--> Principal Home Secretary: Member-Secretary

|

decisions by majority of members present and voting

|

recommendation to Lieutenant Governor

|

LG may accept / seek material / return with written reasons

|

continuing disagreement -> LG decision final

- [FACT] Act 19 of 2023 is deemed in force from 19 May 2023.
- [FACT] Section 45E creates the three-member NCCSA; two senior officials sit with the Chief Minister and decisions are by majority.
- [FACT] Section 45H covers transfer/posting recommendations for Group A and DANICS officers and vigilance/disciplinary recommendations, subject to statutory exclusions.
- [FACT] If the LG differs, he may return the recommendation with recorded reasons; after difference persists, the LG's decision is final.
- [FACT] The Act also expands statutory routes for matters to be placed before the LG and gives the Central Government rule-making power under Part IV-A.
- [ANALYSIS] The Act converts services control from direct elected-government primacy into an Authority-plus-LG structure with ultimate LG primacy on disagreement.

- [LIMIT] Do not write that the elected Delhi government presently enjoys unqualified control over services.

CLOSING RECALL FLOW - GNCTD AMENDMENT ACT, 2023 AND NCCSA

START / CONCEPT: GNCTD AMENDMENT ACT, 2023 AND NCCSA

|

v

EXACT TERMS: GNCTD • AMENDMENT • ACT • NCCSA • created • statutory

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to how Act 19 of 2023 created the NCCSA and statutory Lieutenant-Governor primacy on disagreement.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in gnctd amendment act, 2023 and nccsa.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise gnctd amendment act, 2023 and nccsa beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Gnctd Amendment Act, 2023 And Nccsa is best understood as how Act 19 of 2023 created the NCCSA and statutory Lieutenant-Governor primacy on disagreement.

SESSION 30 - DELHI'S CURRENT LEGAL POSITION: HOW TO WRITE IT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Delhi'S Current Legal Position: How To Write It explains how to state Delhi's present law by sequencing judgment, statute and unresolved constitutional challenge.

Technical definition: Delhi'S Current Legal Position: How To Write It operates through how to state Delhi's present law by sequencing judgment, statute and unresolved constitutional challenge, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Delhi'S Current Legal Position: How To Write It is best understood as how to state Delhi's present law by sequencing judgment, statute and unresolved constitutional challenge.

MUST-WRITE KEYWORDS

- DELHI
- LEGAL
- POSITION
- law
- sequencing

How to use them: Frame the answer through DELHI; define LEGAL, connect POSITION with law to explain the mechanism, and use sequencing for the decisive comparison or qualification.

Visual 30 - Current-law answer sequence

ARTICLE 239AA TEXT

+

2018 aid/advice judgment

+

Delhi services judgment (2023)

+

GNCTD Amendment Act, 2023 / NCCSA

+

pending constitutional challenge

=

CURRENT QUALIFIED ANSWER

- [CURRENT] The constitutional principles from 2018 remain essential.
- [CURRENT] The May 2023 judgment explains why services fall within Entry 41 and democratic accountability.
- [CURRENT] Parliament then enacted the 2023 amendment, which presently governs the NCCSA/LG process.
- [LIMIT] The constitutional challenge remains relevant, but a pending challenge does not suspend the Act.
- [ANALYSIS] Delhi therefore has elected executive authority within a constitutionally and statutorily bounded sphere, not a clean State-style services command.

CLOSING RECALL FLOW - DELHI'S CURRENT LEGAL POSITION: HOW TO WRITE IT

START / CONCEPT: DELHI'S CURRENT LEGAL POSITION: HOW TO WRITE IT

|

v

EXACT TERMS: DELHI • LEGAL • POSITION • law • sequencing

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to how to state Delhi's present law by sequencing judgment, statute and unresolved constitutional challenge.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in delhi's current legal position: how to write it.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise delhi's current legal position: how to write it beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Delhi's Current Legal Position: How To Write It is best understood as how to state Delhi's present law by sequencing judgment, statute and unresolved constitutional challenge.

SESSION 31 - PUDUCHERRY'S STATUTORY LEGISLATURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Puducherry'S Statutory Legislature explains Puducherry's Article 239A and 1963 Act legislature with broad State and Concurrent List competence.

Technical definition: Puducherry'S Statutory Legislature operates through Puducherry's Article 239A and 1963 Act legislature with broad State and Concurrent List competence, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Puducherry'S Statutory Legislature is best understood as Puducherry's Article 239A and 1963 Act legislature with broad State and Concurrent List competence.

MUST-WRITE KEYWORDS

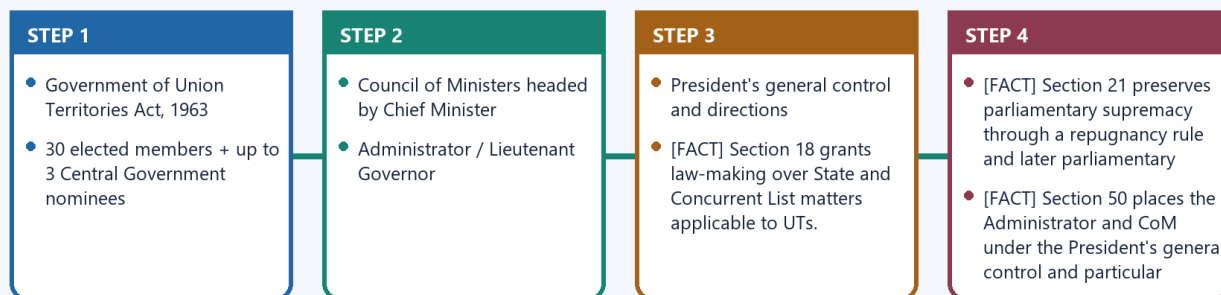
- PUDUCHERRY
- STATUTORY
- LEGISLATURE
- Article

- 239A

- Act

How to use them: Frame the answer through PUDUCHERRY; define STATUTORY, connect LEGISLATURE with Article to explain the mechanism, and use 239A for the decisive comparison or qualification.

PUDUCHERRY'S STATUTORY LEGISLATURE



Topic-specific visual map: Puducherry's statutory legislature.

Visual 31 - Puducherry institutional chain

Article 239A

Government of Union Territories Act, 1963

30 elected members + up to 3 Central Government nominees

Council of Ministers headed by Chief Minister

Administrator / Lieutenant Governor

President's general control and directions

- [FACT] Section 3 of the 1963 Act provides thirty directly elected seats and permits the Central Government to nominate not more than three non-government-service persons.
- [FACT] Section 18 grants law-making over State and Concurrent List matters applicable to UTs.
- [FACT] Section 21 preserves parliamentary supremacy through a repugnancy rule and later parliamentary override.
- [FACT] Sections 44-46 govern aid/advice, differences, ministerial appointment and business; the Chief Minister is appointed by the President.
- [FACT] Section 50 places the Administrator and CoM under the President's general control and particular directions.
- [ANALYSIS] Puducherry combines a broad local legislative field with a strong statutory Union-supervision layer.

CLOSING RECALL FLOW - PUDUCHERRY'S STATUTORY LEGISLATURE

START / CONCEPT: PUDUCHERRY'S STATUTORY LEGISLATURE

|

v

EXACT TERMS: PUDUCHERRY • STATUTORY • LEGISLATURE • Article • 239A • Act

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Puducherry's Article 239A and 1963 Act legislature with broad State and Concurrent List competence.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in puducherry's statutory legislature.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise puducherry's statutory legislature beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Puducherry'S Statutory Legislature is best understood as Puducherry's Article 239A and 1963 Act legislature with broad State and Concurrent List competence.

SESSION 32 - K. LAKSHMINARAYANAN (2018) AND NOMINATED MEMBERS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: K. Lakshminarayanan (2018) And Nominated Members explains why Central nominees are full voting Puducherry Assembly members under K. Lakshminarayanan (2018).

Technical definition: K. Lakshminarayanan (2018) And Nominated Members operates through why Central nominees are full voting Puducherry Assembly members under K. Lakshminarayanan (2018), subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

K. Lakshminarayanan (2018) And Nominated Members is best understood as why Central nominees are full voting Puducherry Assembly members under K. Lakshminarayanan (2018).

MUST-WRITE KEYWORDS

- LAKSHMINARAYANAN
- NOMINATED
- MEMBERS
- Central
- nominees
- are
- full

How to use them: Frame the answer through LAKSHMINARAYANAN; define NOMINATED, connect MEMBERS with Central to explain the mechanism, and use nominees for the decisive comparison or qualification.

Visual 32 - Nominated-member rule

Central Government nomination under section 3(3)
|
no statutory requirement of Puducherry CoM concurrence
|
nominated member becomes full Assembly member
|
votes on "all questions"
|
includes budget and no-confidence motion

- [FACT] In *K. Lakshminarayanan (2018) v. Union of India* (6 December 2018), the Supreme Court upheld the Central Government's nomination power.
- [FACT] The Court found no established convention requiring names to emanate from or receive concurrence of the Chief Minister.
- [FACT] It held nominated members may vote on all questions, including the budget and a no-confidence motion.
- [ANALYSIS] Nomination can affect government survival, illustrating the democratic sensitivity of statutory design.
- [LIMIT] The judgment interpreted the existing Act; criticism of the design must not be presented as a contrary legal rule.

CLOSING RECALL FLOW - K. LAKSHMINARAYANAN (2018) AND NOMINATED MEMBERS

START / CONCEPT: K. LAKSHMINARAYANAN (2018) AND NOMINATED MEMBERS
|
v
EXACT TERMS: LAKSHMINARAYANAN • NOMINATED • MEMBERS • Central • nominees • are • full
|
v
MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to why Central nominees are full voting Puducherry Assembly members under K. Lakshminarayanan (2018).
|
v
CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in K. Lakshminarayanan (2018) and nominated members.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise K. Lakshminarayanan (2018) and nominated members beyond its exact Article, statute, territorial field or dated legal status.
|
v
ANSWER-GRABBING FORMULATION: K. Lakshminarayanan (2018) And Nominated Members is best understood as why Central nominees are full voting Puducherry Assembly members under K. Lakshminarayanan (2018).

SESSION 33 - PUDUCHERRY: ARTICLE 240'S CONDITIONAL RETURN

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Puducherry: Article 240'S Conditional Return explains when Article 240 regulation power revives during Puducherry Assembly suspension or dissolution.

Technical definition: Puducherry: Article 240'S Conditional Return operates through when Article 240 regulation power revives during Puducherry Assembly suspension or dissolution, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Puducherry: Article 240'S Conditional Return is best understood as when Article 240 regulation power revives during Puducherry Assembly suspension or dissolution.

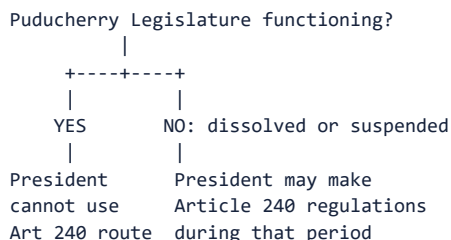
MUST-WRITE KEYWORDS

- PUDUCHERRY
- ARTICLE
- CONDITIONAL

- RETURN
- when
- regulation

How to use them: Frame the answer through PUDUCHERRY; define ARTICLE, connect CONDITIONAL with RETURN to explain the mechanism, and use when for the decisive comparison or qualification.

Visual 33 - Legislature functioning test



- [FACT] Article 240's first proviso stops presidential regulations after the Legislature's first meeting while it functions.
- [FACT] The second proviso revives the power during dissolution or suspension.
- [FACT] Article 239B ordinance power is unavailable during dissolution/suspension, preventing the two emergency routes from being confused.
- [ANALYSIS] The Constitution switches law-making mechanisms according to whether representative institutions function.

CLOSING RECALL FLOW - PUDUCHERRY: ARTICLE 240'S CONDITIONAL RETURN

```

START / CONCEPT: PUDUCHERRY: ARTICLE 240'S CONDITIONAL RETURN
|
v
EXACT TERMS: PUDUCHERRY • ARTICLE • CONDITIONAL • RETURN • when • regulation
|
v
MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and
institution-specific allocation relevant to when Article 240 regulation power revives during
Puducherry Assembly suspension or dissolution.
|
v
CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and
Union control in puducherry: article 240's conditional return.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise puducherry: article 240's conditional return beyond its
exact Article, statute, territorial field or dated legal status.
|
v
ANSWER-GRABBING FORMULATION: Puducherry: Article 240'S Conditional Return is best understood as
when Article 240 regulation power revives during Puducherry Assembly suspension or dissolution.
  
```

SESSION 34 - JAMMU AND KASHMIR: 2019 REORGANISATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Jammu And Kashmir: 2019 Reorganisation explains how the 2019 Act created Jammu and Kashmir with a legislature and Ladakh without one.

Technical definition: Jammu And Kashmir: 2019 Reorganisation operates through how the 2019 Act created Jammu and Kashmir with a legislature and Ladakh without one, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Jammu And Kashmir: 2019 Reorganisation is best understood as how the 2019 Act created Jammu and Kashmir with a legislature and Ladakh without one.

MUST-WRITE KEYWORDS

- JAMMU
- KASHMIR
- REORGANISATION
- Act
- created
- legislature

How to use them: Frame the answer through JAMMU; define KASHMIR, connect REORGANISATION with Act to explain the mechanism, and use created for the decisive comparison or qualification.

JAMMU AND KASHMIR: 2019 REORGANISATION

AXIS 1

- FORMER STATE OF JAMMU AND KASHMIR
- J&K Reorganisation Act, effective 31 Oct 2019
- J&K UT with legislature Ladakh UT without legislature

AXIS 2

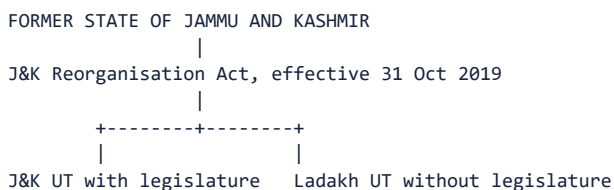
- [FACT] Section 13 applies Article 239A's provisions to J&K; section 14 creates a Legislative Assembly and LG.
- [FACT] Section 32 excludes public order and police from the Assembly's State-List competence; land is not a blanket excluded entry.
- [ANALYSIS] Reorganisation created unequal successor UTs and converted a State legislature into a narrower statutory legislature.

AXIS 3

- [LIMIT] Full Article 370 history belongs to Polity 22.

Topic-specific visual map: Jammu and Kashmir: 2019 reorganisation.

Visual 34 - Reorganisation outcome



- [FACT] Section 13 applies Article 239A's provisions to J&K; section 14 creates a Legislative Assembly and LG.
- [FACT] Section 32 excludes public order and police from the Assembly's State-List competence; land is not a blanket excluded entry.
- [FACT] Section 35 makes parliamentary law prevail over repugnant local law, subject to presidential-assent and later-Parliament qualifications.
- [ANALYSIS] Reorganisation created unequal successor UTs and converted a State legislature into a narrower statutory legislature.
- [LIMIT] Full Article 370 history belongs to Polity 22.

CLOSING RECALL FLOW - JAMMU AND KASHMIR: 2019 REORGANISATION

START / CONCEPT: JAMMU AND KASHMIR: 2019 REORGANISATION

|

v

EXACT TERMS: JAMMU • KASHMIR • REORGANISATION • Act • created • legislature

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to how the 2019 Act created Jammu and Kashmir with a legislature and Ladakh without one.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in jammu and kashmir: 2019 reorganisation.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise jammu and kashmir: 2019 reorganisation beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Jammu And Kashmir: 2019 Reorganisation is best understood as how the 2019 Act created Jammu and Kashmir with a legislature and Ladakh without one.

SESSION 35 - J&K ASSEMBLY: POWERS AND FUNCTIONS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: J&K Assembly: Powers And Functions explains Jammu and Kashmir Assembly law-making, budget and accountability functions excluding public order and police.

Technical definition: J&K Assembly: Powers And Functions operates through Jammu and Kashmir Assembly law-making, budget and accountability functions excluding public order and police, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

J&K Assembly: Powers And Functions is best understood as Jammu and Kashmir Assembly law-making, budget and accountability functions excluding public order and police.

MUST-WRITE KEYWORDS

- J&K
- ASSEMBLY
- POWERS
- FUNCTIONS
- Jammu
- Kashmir
- law

How to use them: Frame the answer through J&K; define ASSEMBLY, connect POWERS with FUNCTIONS to explain the mechanism, and use Jammu for the decisive comparison or qualification.

Visual 35 - Functional map

Function	Named legal basis	What it proves	Qualification
legislation	section 32	State/Concurrent field except public order and police	Parliament retains full UT power
finance	sections 36 and financial provisions	taxes, grants, appropriation and budget scrutiny	LG recommendation/Union architecture matters
accountability	section 53 collective responsibility	CoM must retain Assembly confidence	LG discretion remains wider than State Governor model
debate and privilege	sections 30-31	speech, committees and representative scrutiny	statutory, not Part VI, privileges
bills and assent	sections 38-39	Assembly can enact laws	reservation for President and override remain
anti-defection	section 28	party discipline framework applies	modified Tenth Schedule route

- [FACT] The Assembly is a real legislature with law-making, financial, deliberative and confidence functions.
- [ANALYSIS] Its weakness relative to a State lies not in absence of functions but in narrower competence and stronger Union/LG control.
- [LIMIT] "Statutory" does not mean legally insignificant; it means Parliament shaped and can amend the institutional design through law.

CLOSING RECALL FLOW - J&K ASSEMBLY: POWERS AND FUNCTIONS

START / CONCEPT: J&K ASSEMBLY: POWERS AND FUNCTIONS

|

v

EXACT TERMS: J&K • ASSEMBLY • POWERS • FUNCTIONS • Jammu • Kashmir • law

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Jammu and Kashmir Assembly law-making, budget and accountability functions excluding public order and police.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in j&k assembly: powers and functions.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise j&k assembly: powers and functions beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: J&K Assembly: Powers And Functions is best understood as Jammu and Kashmir Assembly law-making, budget and accountability functions excluding public order and police.

SESSION 36 - J&K LIEUTENANT GOVERNOR AND THE 2024 BUSINESS-RULE AMENDMENTS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: J&K Lieutenant Governor And The 2024 Business-Rule Amendments explains Lieutenant-Governor control and specified business routing after the 2024 J&K rule amendments.

Technical definition: J&K Lieutenant Governor And The 2024 Business-Rule Amendments operates through Lieutenant-Governor control and specified business routing after the 2024 J&K rule amendments, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

J&K Lieutenant Governor And The 2024 Business-Rule Amendments is best understood as Lieutenant-Governor control and specified business routing after the 2024 J&K rule amendments.

MUST-WRITE KEYWORDS

- J&K
- LIEUTENANT
- GOVERNOR
- BUSINESS
- RULE
- AMENDMENTS

How to use them: Frame the answer through J&K; define LIEUTENANT, connect GOVERNOR with BUSINESS to explain the mechanism, and use RULE for the decisive comparison or qualification.

Visual 36 - LG discretion and routing

2019 Act section 53

discretion outside Assembly field

+ matters legally requiring discretion

+ All India Services / Anti-Corruption Bureau

|

2024 Second Amendment Rules, G.S.R. 386(E)

|

specified police/public order/AIS/ACB finance proposals
and legal/prosecution/secretary-posting matters

|

routed to LG through Chief Secretary and prescribed channels

- [FACT] Section 53 requires aid and advice within the Assembly's field but expressly gives discretion outside it and for All India Services and the Anti-Corruption Bureau.
- [FACT] The 2024 rules inserted routing requirements for specified police, public order, AIS, ACB, law-officer, prosecution, prisons, forensic and senior-posting matters.
- [ANALYSIS] The rules sharpen operational LG control before and after the elected government's return.
- [LIMIT] The rules govern transaction and routing; they should not be paraphrased as abolition of the CoM or Assembly.

CLOSING RECALL FLOW - J&K LIEUTENANT GOVERNOR AND THE 2024 BUSINESS-RULE AMENDMENTS

START / CONCEPT: J&K LIEUTENANT GOVERNOR AND THE 2024 BUSINESS-RULE AMENDMENTS

|

v

EXACT TERMS: J&K • LIEUTENANT • GOVERNOR • BUSINESS • RULE • AMENDMENTS

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Lieutenant-Governor control and specified business routing after the 2024 J&K rule amendments.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in j&k lieutenant governor and the 2024 business-rule amendments.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise j&k lieutenant governor and the 2024 business-rule amendments beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: J&K Lieutenant Governor And The 2024 Business-Rule Amendments is best understood as Lieutenant-Governor control and specified business routing after the 2024 J&K rule amendments.

SESSION 37 - J&K AFTER THE 2024 ELECTION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: J&K After The 2024 Election explains Jammu and Kashmir's functioning elected government after 2024 without legal restoration of Statehood.

Technical definition: J&K After The 2024 Election operates through Jammu and Kashmir's functioning elected government after 2024 without legal restoration of Statehood, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

J&K After The 2024 Election is best understood as Jammu and Kashmir's functioning elected government after 2024 without legal restoration of Statehood.

MUST-WRITE KEYWORDS

- J&K
- AFTER
- ELECTION
- Jammu
- Kashmir
- functioning

How to use them: Frame the answer through J&K; define AFTER, connect ELECTION with Jammu to explain the mechanism, and use Kashmir for the decisive comparison or qualification.

Visual 37 - Present status control

11 Dec 2023 Supreme Court judgment
|
election direction by 30 Sep 2024
|
Sep-Oct 2024 Assembly election
|
elected Chief Minister + Council + functioning House
|
official Budget 2026-27 presented to House
|
5 Sep 2026: UT status continues; Statehood pending

- [CURRENT] It is stale and false to say J&K remains without an elected legislature.
- [CURRENT] The official 2026-27 Budget Speech identifies Omar Abdullah as Chief Minister and Finance Minister and addresses the Speaker and members of the House.
- [CURRENT] Statehood has not been restored by constitutional amendment, parliamentary law or appointed-day notification located by the control date.
- [LIMIT] The Court's "earliest and as soon as possible" direction did not supply a fixed date.
- [ANALYSIS] Democratic government has been restored within the UT framework; federal status has not been restored to State level.

CLOSING RECALL FLOW - J&K AFTER THE 2024 ELECTION

START / CONCEPT: J&K AFTER THE 2024 ELECTION

|

v

EXACT TERMS: J&K • AFTER • ELECTION • Jammu • Kashmir • functioning

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to Jammu and Kashmir's functioning elected government after 2024 without legal restoration of Statehood.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in j&k after the 2024 election.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise j&k after the 2024 election beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: J&K After The 2024 Election is best understood as Jammu and Kashmir's functioning elected government after 2024 without legal restoration of Statehood.

SESSION 38 - ASYMMETRIC GOVERNANCE ACROSS THE UTS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Asymmetric Governance Across The Uts explains asymmetry across direct, Delhi, Puducherry and Jammu and Kashmir Union Territory designs.

Technical definition: Asymmetric Governance Across The Uts operates through asymmetry across direct, Delhi, Puducherry and Jammu and Kashmir Union Territory designs, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

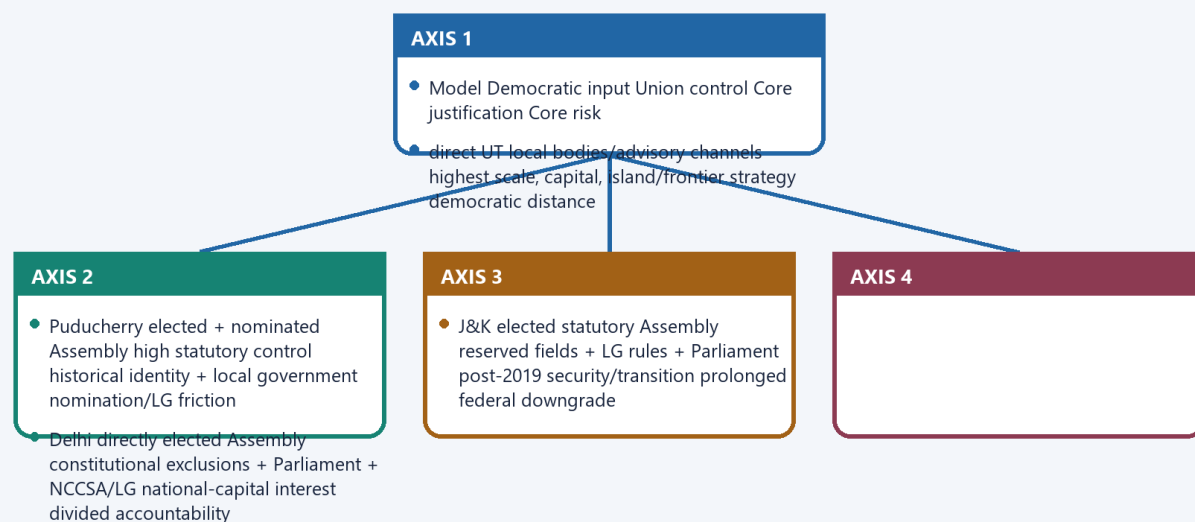
Asymmetric Governance Across The Uts is best understood as asymmetry across direct, Delhi, Puducherry and Jammu and Kashmir Union Territory designs.

MUST-WRITE KEYWORDS

- **ASYMMETRIC**
- **GOVERNANCE**
- **ACROSS**
- **UTS**
- **asymmetry**
- **direct**
- **Delhi**

How to use them: Frame the answer through ASYMMETRIC; define GOVERNANCE, connect ACROSS with UTS to explain the mechanism, and use asymmetry for the decisive comparison or qualification.

ASYMMETRIC GOVERNANCE ACROSS THE UTS



Topic-specific visual map: Asymmetric governance across the UTs.

Visual 38 - Asymmetry matrix

Model	Democratic input	Union control	Core justification	Core risk
direct UT	local bodies/advisory channels	highest	scale, capital, island/frontier strategy	democratic distance
Puducherry	elected + nominated Assembly	high statutory control	historical identity + local government	nomination/LG friction
Delhi	directly elected Assembly	constitutional exclusions + Parliament + NCCSA/LG	national-capital interest	divided accountability
J&K	elected statutory Assembly	reserved fields + LG rules + Parliament	post-2019 security/transition	prolonged federal downgrade

- [ANALYSIS] Asymmetry is constitutionally legitimate when linked to a reason, bounded by law and accompanied by accountable institutions.
- [ANALYSIS] The democratic objection grows when residents elect a government but effective control over officers, bills or reserved fields lies elsewhere.
- [LIMIT] Equal citizenship does not require identical territorial institutions, but differentiation must remain constitutionally reviewable.

CLOSING RECALL FLOW - ASYMMETRIC GOVERNANCE ACROSS THE UTS

START / CONCEPT: ASYMMETRIC GOVERNANCE ACROSS THE UTS

|

v

EXACT TERMS: ASYMMETRIC · GOVERNANCE · ACROSS · UTS · asymmetry · direct · Delhi

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to asymmetry across direct, Delhi, Puducherry and Jammu and Kashmir Union Territory designs.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in asymmetric governance across the uts.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise asymmetric governance across the uts beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Asymmetric Governance Across The Uts is best understood as asymmetry across direct, Delhi, Puducherry and Jammu and Kashmir Union Territory designs.

SESSION 39 - WHY ADMINISTRATOR-VERSUS-ELECTED-GOVERNMENT FRICTION OCCURS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Why Administrator-Versus-Elected-Government Friction Occurs explains why split legal authority over fields, officers and referrals produces elected-government friction.

Technical definition: Why Administrator-Versus-Elected-Government Friction Occurs operates through why split legal authority over fields, officers and referrals produces elected-government friction, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Why Administrator-Versus-Elected-Government Friction Occurs is best understood as why split legal authority over fields, officers and referrals produces elected-government friction.

MUST-WRITE KEYWORDS

- ADMINISTRATOR
- VERSUS
- ELECTED
- GOVERNMENT
- FRICTION
- OCCURS
- split

How to use them: Frame the answer through ADMINISTRATOR; define VERSUS, connect ELECTED with GOVERNMENT to explain the mechanism, and use FRICTION for the decisive comparison or qualification.

Visual 39 - Friction mechanism

ELECTORAL MANDATE
 |
 minister promises policy
 |
 needs law + money + officers + assent
 |
 split control over one or more inputs
 |
 LG reference / reservation / service control / parliamentary law
 |
 delay + blame shifting + litigation

- [ANALYSIS] The conflict is structural: responsibility may lie with elected ministers while decisive instruments lie with the Union-appointed administrator.
- [FACT] Delhi services, Puducherry nominations and J&K business routing are named examples of different mechanisms producing similar accountability tension.
- [ANALYSIS] Party conflict can intensify the structure but does not create the legal overlap.
- [LIMIT] Not every disagreement is obstruction; reserved national interests and legality checks can justify intervention.

CLOSING RECALL FLOW - WHY ADMINISTRATOR-VERSUS-ELECTED-GOVERNMENT FRICTION OCCURS

START / CONCEPT: WHY ADMINISTRATOR-VERSUS-ELECTED-GOVERNMENT FRICTION OCCURS
 |
 v
 EXACT TERMS: ADMINISTRATOR • VERSUS • ELECTED • GOVERNMENT • FRICTION • OCCURS • split
 |
 v
 MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to why split legal authority over fields, officers and referrals produces elected-government friction.
 |
 v
 CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in why administrator-versus-elected-government friction occurs.
 |
 v
 UPSC TRAP / ANSWER-USE: Do not generalise why administrator-versus-elected-government friction occurs beyond its exact Article, statute, territorial field or dated legal status.
 |
 v
 ANSWER-GRABBING FORMULATION: Why Administrator-Versus-Elected-Government Friction Occurs is best understood as why split legal authority over fields, officers and referrals produces elected-government friction.

SESSION 40 - ACCOUNTABILITY TEST FOR ANY UT ARRANGEMENT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Accountability Test For Any Ut Arrangement explains a field, decision-maker, override, staff, finance and remedy test for territorial accountability.

Technical definition: Accountability Test For Any Ut Arrangement operates through a field, decision-maker, override, staff, finance and remedy test for territorial accountability, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Accountability Test For Any Ut Arrangement is best understood as a field, decision-maker, override, staff, finance and remedy test for territorial accountability.

MUST-WRITE KEYWORDS

- ACCOUNTABILITY
- TEST

- ANY
- ARRANGEMENT
- field
- decision
- maker

How to use them: Frame the answer through ACCOUNTABILITY; define TEST, connect ANY with ARRANGEMENT to explain the mechanism, and use field for the decisive comparison or qualification.

Visual 40 - Five-question audit

1. WHO MAKES THE LAW?
2. WHO CONTROLS THE OFFICER?
3. WHO CONTROLS THE MONEY?
4. WHO CAN STOP / RESERVE / REFER THE DECISION?
5. WHO FACES THE VOTER OR COURT?

- [ANALYSIS] A credible evaluation follows authority across the entire implementation chain.
- [FACT] Delhi's services dispute proves that legislative competence without officer control can weaken accountability.
- [FACT] Article 241 and judicial review ensure that direct administration remains subject to law.
- [LIMIT] More local control is not automatically better; strategic, minority, fiscal and integrity safeguards must be designed rather than ignored.

CLOSING RECALL FLOW - ACCOUNTABILITY TEST FOR ANY UT ARRANGEMENT

```

START / CONCEPT: ACCOUNTABILITY TEST FOR ANY UT ARRANGEMENT
|
v
EXACT TERMS: ACCOUNTABILITY • TEST • ANY • ARRANGEMENT • field • decision • maker
|
v
MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and
institution-specific allocation relevant to a field, decision-maker, override, staff, finance and
remedy test for territorial accountability.
|
v
CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and
Union control in accountability test for any ut arrangement.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise accountability test for any ut arrangement beyond its
exact Article, statute, territorial field or dated legal status.
|
v
ANSWER-GRABBING FORMULATION: Accountability Test For Any Ut Arrangement is best understood as a
field, decision-maker, override, staff, finance and remedy test for territorial accountability.

```

SESSION 41 - TERRITORIAL STATUS AND TOPIC-OWNERSHIP BOUNDARY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Territorial Status And Topic-Ownership Boundary explains where Union Territory institutions end and Articles 1 to 4 or Article 370 history belong to other owners.

Technical definition: Territorial Status And Topic-Ownership Boundary operates through where Union Territory institutions end and Articles 1 to 4 or Article 370 history belong to other owners, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Territorial Status And Topic-Ownership Boundary is best understood as where Union Territory institutions end and Articles 1 to 4 or Article 370 history belong to other owners.

MUST-WRITE KEYWORDS

- TERRITORIAL
- STATUS
- TOPIC
- OWNERSHIP
- BOUNDARY
- where
- institutions

How to use them: Frame the answer through TERRITORIAL; define STATUS, connect TOPIC with OWNERSHIP to explain the mechanism, and use BOUNDARY for the decisive comparison or qualification.

Visual 41 - Ownership flow

Should territory be a State or UT?
|
Articles 1-4 / reorganisation -> POLITY 05
|
Once it is a UT, how is it governed?
|
Articles 239-241 / statutes -> POLITY 25
|
Does Article 370 / 371 / Schedule protection apply?
|
Special provisions -> POLITY 22 / 26

- [FACT] Article 3 enables territorial reorganisation; it does not itself supply the day-to-day UT governance code.
- [ANALYSIS] A Mains answer on J&K Statehood should use Polity 05 for status change and this package for the consequences of UT status.
- [LIMIT] Do not duplicate full Berubari, Article 370 or Sixth Schedule doctrine here.

CLOSING RECALL FLOW - TERRITORIAL STATUS AND TOPIC-OWNERSHIP BOUNDARY

START / CONCEPT: TERRITORIAL STATUS AND TOPIC-OWNERSHIP BOUNDARY
|
v
EXACT TERMS: TERRITORIAL • STATUS • TOPIC • OWNERSHIP • BOUNDARY • where • institutions
|
v
MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to where Union Territory institutions end and Articles 1 to 4 or Article 370 history belong to other owners.
|
v
CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in territorial status and topic-ownership boundary.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise territorial status and topic-ownership boundary beyond its exact Article, statute, territorial field or dated legal status.
|
v
ANSWER-GRABBING FORMULATION: Territorial Status And Topic-Ownership Boundary is best understood as where Union Territory institutions end and Articles 1 to 4 or Article 370 history belong to other owners.

SESSION 42 - EVIDENCE-LINKED ANSWER METHOD

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Evidence-Linked Answer Method explains a claim, named authority, mechanism, current control, limitation and verdict method for GS-II answers.

Technical definition: Evidence-Linked Answer Method operates through a claim, named authority, mechanism, current control, limitation and verdict method for GS-II answers, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Evidence-Linked Answer Method is best understood as a claim, named authority, mechanism, current control, limitation and verdict method for GS-II answers.

MUST-WRITE KEYWORDS

- **LINKED**
- **METHOD**
- **claim**
- **named**
- **authority**

How to use them: Frame the answer through LINKED; define METHOD, connect claim with named to explain the mechanism, and use authority for the decisive comparison or qualification.

Visual 42 - Claim-to-verdict spine

CLAIM

- > NAMED ARTICLE / SECTION / CASE / OFFICIAL CURRENT SOURCE
- > WHAT THE EVIDENCE PROVES
- > LIMIT OR COUNTERPOINT
- > DIRECT VERDICT

Worked example

- **Claim:** [ANALYSIS] Delhi's elected government has meaningful but not State-equivalent executive authority.
- **Named evidence:** [FACT] Article 239AA grants a legislative field; the 2018 judgment binds the LG to aid and advice within it; the 2023 services judgment includes Entry 41; Act 19 of 2023 creates NCCSA and final LG primacy on disagreement.
- **What it proves:** [ANALYSIS] democratic control exists, but its service mechanism is now statutorily shared and Union-weighted.
- **Qualification:** [LIMIT] the 2023 Act is under constitutional challenge and its final validity is unresolved.
- **Verdict:** [ANALYSIS] Delhi is a bounded representative government inside a continuing Union-territory framework.

CLOSING RECALL FLOW - EVIDENCE-LINKED ANSWER METHOD

START / CONCEPT: EVIDENCE-LINKED ANSWER METHOD

|

v

EXACT TERMS: LINKED • METHOD • claim • named • authority

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to a claim, named authority, mechanism, current control, limitation and verdict method for GS-II answers.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in evidence-linked answer method.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise evidence-linked answer method beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Evidence-Linked Answer Method is best understood as a claim, named authority, mechanism, current control, limitation and verdict method for GS-II answers.

SESSION 43 - PRELIMS CLOSE-OPTION DISTINCTIONS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Prelims Close-Option Distinctions explains close-option distinctions among Articles, legislatures, reserved fields, courts and regulation routes.

Technical definition: Prelims Close-Option Distinctions operates through close-option distinctions among Articles, legislatures, reserved fields, courts and regulation routes, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Prelims Close-Option Distinctions is best understood as close-option distinctions among Articles, legislatures, reserved fields, courts and regulation routes.

MUST-WRITE KEYWORDS

- CLOSE
- OPTION
- DISTINCTIONS
- among
- Articles
- legislatures

How to use them: Frame the answer through CLOSE; define OPTION, connect DISTINCTIONS with among to explain the mechanism, and use Articles for the decisive comparison or qualification.

Visual 43 - Rapid discrimination table

Confusion	Correct distinction
current UT count	8, not 9
with legislatures	Delhi, Puducherry, J&K
Article 239A	Puducherry; applied to J&K by 2019 Act section 13
Article 239AA	Delhi only
Article 239AB	Delhi failure-of-machinery mechanism
Article 239B	Puducherry ordinance power; applied to Delhi by 239AA(8)
Article 240	A&N, Lakshadweep, DNHDD, Ladakh route; Puducherry conditionally
Chandigarh and Article 240	Chandigarh is not listed
Delhi exclusions	public order, police, land
J&K exclusions	public order, police; not blanket land exclusion
Puducherry nominees	up to three; Central Government nomination
separate High Court	Delhi only
Administrator	President's agent, not State Governor
Parliament and UT State List	competence continues under Article 246(4)

CLOSING RECALL FLOW - PRELIMS CLOSE-OPTION DISTINCTIONS

START / CONCEPT: PRELIMS CLOSE-OPTION DISTINCTIONS

|

v

EXACT TERMS: CLOSE · OPTION · DISTINCTIONS · among · Articles · legislatures

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to close-option distinctions among Articles, legislatures, reserved fields, courts and regulation routes.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in prelims close-option distinctions.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise prelims close-option distinctions beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Prelims Close-Option Distinctions is best understood as close-option distinctions among Articles, legislatures, reserved fields, courts and regulation routes.

SESSION 44 - DATED LEGAL-POSITION CONTROL SHEET

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Dated Legal-Position Control Sheet explains the verified 5 September 2026 position on UT count, Delhi services law, J&K government, Statehood and courts.

Technical definition: Dated Legal-Position Control Sheet separates operative law, pending litigation, functioning institutions and political proposals as at 5 September 2026.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Dated Legal-Position Control Sheet is best understood as a dated firewall against converting litigation, proposals or former arrangements into present law.

MUST-WRITE KEYWORDS

- dated control
- eight UTs
- GNCTD Act
- J&K Assembly
- Statehood
- High Court
- operative law

How to use them: Frame the answer through dated control; define eight UTs, connect GNCTD Act with J&K Assembly to explain the mechanism, and use Statehood for the decisive comparison or qualification.

UNION TERRITORIES — CURRENT LEGAL CONTROL

Position checked: 28 August 2026

COUNT	8 Union Territories; Delhi, Puducherry and J&K have legislatures.
DELHI SERVICES	Act 19 of 2023 and NCCSA remain operative; challenge unresolved.
J&K	Elected Assembly and CoM function; Statehood has not been restored.
LADAKH	UT without legislature; Statehood/Sixth Schedule demands are proposals.
COURTS	Delhi exclusive HC; J&K and Ladakh share a common High Court.
EXAM FIREWALL	Operative law ≠ pending challenge; proposal ≠ enacted status.

Current legal-status control sheet for Union Territories.

Visual 44 - Dated current controls

Issue	Current control at 5 Sep 2026	Unsafe statement
count	8 UTs	"India has 9 UTs"
legislatures	Delhi, Puducherry, J&K	"only Delhi and Puducherry"
Delhi services	2023 Act/NCCSA operative; LG final on Authority disagreement	"Delhi govt has unqualified services control"
J&K Assembly	elected and functioning after 2024	"J&K has no elected legislature"
J&K Statehood	not legally restored	"Court restored Statehood"
Ladakh	UT without legislature	"Ladakh has Assembly/Sixth Schedule"
Puducherry nominees	full voting members under 2018 ruling	"nominees cannot vote on confidence/budget"
High Court name	High Court of Jammu & Kashmir and Ladakh	stale shorter name as current official title

- [LIMIT] Current-control statements should always carry a date where litigation or political transition could change the position.

CLOSING RECALL FLOW - DATED LEGAL-POSITION CONTROL SHEET

START / CONCEPT: DATED LEGAL-POSITION CONTROL SHEET

|

v

EXACT TERMS: dated control · eight UTs · GNCTD Act · J&K Assembly · Statehood · High Court · operative law

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to dated controls for territorial count, Delhi services law, J&K government and unresolved status questions.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in current legal-status control sheet.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise current legal-status control sheet beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Dated Legal-Position Control Sheet is best understood as a dated firewall against converting litigation, proposals or former arrangements into present law.

SESSION 45 - MAINS THESIS BANK

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Mains Thesis Bank explains ready qualified theses on rationale, democracy, Delhi, Puducherry, Jammu and Kashmir and reform.

Technical definition: Mains Thesis Bank operates through ready qualified theses on rationale, democracy, Delhi, Puducherry, Jammu and Kashmir and reform, subject to the exact constitutional or statutory allocation of authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Mains Thesis Bank is best understood as ready qualified theses on rationale, democracy, Delhi, Puducherry, Jammu and Kashmir and reform.

MUST-WRITE KEYWORDS

- **THESIS**
- **BANK**
- **ready**
- **qualified**
- **theses**
- **rationale**

How to use them: Frame the answer through THESIS; define BANK, connect ready with qualified to explain the mechanism, and use theses for the decisive comparison or qualification.

MAINS THESIS BANK

AXIS 1

- Demand Defensible thesis
- rationale UTs are a differentiated-governance device, legitimate when reasons are specific and accountability is preserved

AXIS 2

- Delhi 2018 protected representative government, but the 2023 Act shows the national-capital model remains Union-weighted
- Puducherry broad local legislative competence coexists with statutory nomination and presidential control

AXIS 3

- J&K elected government restored democratic voice, while Statehood and full federal parity remain pending
- reform clarity should align law, officers, finance and accountability while preserving narrowly defined national interests

AXIS 4

- Polity 25 - Union Territories - PYQ, practice and solved workbook
- Verified routed PYQs

Topic-specific visual map: Mains thesis bank.

Visual 45 - Thesis selector

Demand	Defensible thesis
rationale	UTs are a differentiated-governance device, legitimate when reasons are specific and accountability is preserved
democracy	a UT legislature is real self-government but not State-equivalent because Parliament and the Administrator retain decisive powers
Delhi	2018 protected representative government, but the 2023 Act shows the national-capital model remains Union-weighted
Puducherry	broad local legislative competence coexists with statutory nomination and presidential control
J&K	elected government restored democratic voice, while Statehood and full federal parity remain pending
reform	clarity should align law, officers, finance and accountability while preserving narrowly defined national interests

CLOSING RECALL FLOW - MAINS THESIS BANK

START / CONCEPT: MAINS THESIS BANK

|

v

EXACT TERMS: THESIS · BANK · ready · qualified · theses · rationale

|

v

MECHANISM / ARGUMENT: The mechanism follows the governing Article, parliamentary statute and institution-specific allocation relevant to ready qualified theses on rationale, democracy, Delhi, Puducherry, Jammu and Kashmir and reform.

|

v

CONSEQUENCE / CONTRAST: This determines the practical distribution of democratic accountability and Union control in mains thesis bank.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise mains thesis bank beyond its exact Article, statute, territorial field or dated legal status.

|

v

ANSWER-GRABBING FORMULATION: Mains Thesis Bank is best understood as ready qualified theses on rationale, democracy, Delhi, Puducherry, Jammu and Kashmir and reform.

POLITY HOSTILE SEMANTIC-REVIEW CORE CONTROL

- **Must remember:** Separate Articles 239, 239A, 239AA, 239AB, 239B, 240, 241 and 246(4), then distinguish direct administration, statutory legislatures and Delhi's constitutionally entrenched NCT model.
- **Close distinction:** Delhi excludes State List Entries 1, 2 and 18 plus related 64-66; J&K excludes public order and police; Puducherry's statutory competence is over List II/III matters insofar as applicable to Union Territories. Parliament retains overriding UT competence.
- **Legal/source limit:** India has eight Union Territories and three legislatures: Delhi, Puducherry and J&K. J&K has an elected government but remains a UT; Ladakh has no legislature. Act 19 of 2023 remains operative while the Delhi services constitutional challenge is unresolved.

Semantic-completeness ownership and PYQ control

- **Part VIII map:** Article 239 provides administration through a President-appointed Administrator; Article 239A enables local legislatures/Councils of Ministers for specified UTs; Article 239AA constitutionalises Delhi; Articles 239AB, 239B, 240 and 241 govern breakdown, ordinances, regulations and High Courts.
- **Parliamentary competence:** Article 246(4) lets Parliament legislate on any matter for territory not included in a State. A UT legislature therefore creates real local accountability without State-equivalent exclusivity.
- **Current classification:** India has eight Union Territories. Delhi, Puducherry and Jammu and Kashmir have legislatures; Andaman and Nicobar Islands, Chandigarh, Dadra and Nagar Haveli and Daman and Diu, Ladakh and Lakshadweep do not.
- **Administrator rule:** an Administrator/Lieutenant Governor is the President's agent rather than a Part VI Governor. Under Article 239(2), a State Governor appointed administrator of an adjoining UT acts independently of the State Council.
- **Delhi field:** Article 239AA excludes State List Entries 1, 2 and 18 and Entries 64, 65 and 66 insofar as related. The 2018 Constitution Bench makes aid and advice the rule and presidential reference exceptional within the allotted field.
- **Delhi services current rule:** the 11 May 2023 Constitution Bench recognised elected-government control over services outside reserved fields. Act 19 of 2023 subsequently created the NCCSA route and statutory LG primacy on disagreement; the Act remains operative and its constitutional challenge remains unresolved on 5 September 2026.
- **Puducherry model:** Article 239A and the Government of Union Territories Act, 1963 create a statutory legislature. Section 18 competence covers List II and III matters insofar as applicable to Union Territories, subject to Parliament's continuing power; Article 239B supplies the ordinance route.
- **J&K model:** the Jammu and Kashmir Reorganisation Act, 2019, effective 31 October 2019, created J&K as a UT with legislature and Ladakh without one. J&K's Assembly field excludes public order and police; unlike Delhi, land is not a generally excluded entry. Parliament retains overriding competence.
- **Article 370 judgment limit:** In re Article 370 upheld the 2019 constitutional result and Ladakh's UT formation but did not finally adjudicate J&K's conversion after the Union's statehood assurance. J&K has an elected Assembly and Council of Ministers after the 2024 election but remains a UT on 5 September 2026.
- **Four-ledger/PYQ control:** the direct 2018 Delhi and 2025 J&K Assembly demands were preserved with Article/statute/judgment/current-status separation. Topic 22 owns Article 370/371 doctrine; Topic 26 owns Scheduled/Tribal Areas.

BASIC MCQS / REMEDIATION

Original MCQ loop - strict continuous A -> B -> C -> D rotation

OM1. Current inventory

Which statement is correct as on 5 September 2026?

A. India has 8 Union Territories. B. Dadra and Nagar Haveli and Daman and Diu remain separate UTs. C. India has 9 Union Territories. D. Delhi and Puducherry are the only UTs with legislatures.

Answer: A.

Explanation: [CURRENT] The eight include J&K and Ladakh separately and DNHDD as one merged UT.

OM2. Administrative default

The constitutional default for administration of a Union Territory is found in:

A. Article 356. B. Article 239. C. Article 243. D. Article 238.

Answer: B.

Explanation: [FACT] Article 239 places administration through a President-appointed Administrator, save as Parliament otherwise provides by law.

OM3. Administrator's character

Which description is constitutionally most accurate?

A. A UT Administrator is appointed by the Chief Minister. B. A UT Administrator is identical to a State Governor in legal source and role. C. A UT Administrator acts as an agent/channel of the President under Article 239. D. A UT Administrator is always the elected territorial head.

Answer: C.

Explanation: [FACT] The office is not a Part VI State headship; powers vary by the UT's special framework.

OM4. Parliament's State-List power

Parliament's power to legislate on a State-List matter for territory not included in a State is expressly stated in:

A. Article 239A. B. Article 240. C. Article 241. D. Article 246(4).

Answer: D.

Explanation: [FACT] This is the core reason Parliament's UT competence continues even where an Assembly exists.

OM5. Puducherry's constitutional hook

Parliament's power to create Puducherry's Legislature and Council of Ministers comes primarily from:

A. Article 239A. B. Article 239AA. C. Article 371. D. Article 240 alone.

Answer: A.

Explanation: [FACT] The Government of Union Territories Act, 1963 operationalises Article 239A.

OM6. Delhi's special article

The National Capital Territory and its Legislative Assembly are constitutionally anchored in:

A. Article 239B only. B. Article 239AA. C. Article 241. D. Article 239.

Answer: B.

Explanation: [FACT] The 69th Amendment inserted Article 239AA.

OM7. Delhi failure of machinery

Which provision allows suspension of the Article 239AA arrangement when Delhi cannot be administered in accordance with it?

A. Article 239A(2). B. Article 356 directly and exclusively. C. Article 239AB. D. Article 239B.

Answer: C.

Explanation: [FACT] Article 239AB is Delhi's specific failure-of-constitutional-machinery provision.

OM8. Ordinances in Puducherry

The Administrator's ordinance power during recess of Puducherry's Legislature is in:

A. Article 123. B. Article 240. C. Article 213. D. Article 239B.

Answer: D.

Explanation: [FACT] Prior presidential instructions are required.

OM9. Article 240 set

Which UT is expressly within Article 240's presidential-regulation text?

A. Andaman and Nicobar Islands. B. Chandigarh. C. Jammu and Kashmir. D. Delhi.

Answer: A.

Explanation: [FACT] A&N is expressly listed; Ladakh uses the route through section 58 of the 2019 Act.

OM10. Article 240 trap

Which UT is **not** covered by the Article 240 regulation route?

A. Ladakh. B. Chandigarh. C. Lakshadweep. D. Dadra and Nagar Haveli and Daman and Diu.

Answer: B.

Explanation: [FACT] Chandigarh is administered under Article 239 but is not in Article 240's specified set.

OM11. UT High Courts

Parliament's power to constitute a High Court for a UT or extend/exclude State High Court jurisdiction is addressed by:

A. Article 231 alone. B. Article 262. C. Article 241. D. Article 214 alone.

Answer: C.

Explanation: [FACT] Articles 214/231 support the wider High Court framework, but Article 241 is the UT-specific provision.

OM12. Separate High Court

Which Union Territory has a separate High Court of its own?

A. Puducherry. B. Chandigarh. C. Jammu and Kashmir. D. NCT Delhi.

Answer: D.

Explanation: [CURRENT] J&K and Ladakh share a common High Court; Delhi alone has a separate UT High Court.

OM13. Andaman jurisdiction

Andaman and Nicobar Islands fall under:

A. Calcutta High Court. B. Madras High Court. C. Bombay High Court. D. Kerala High Court.

Answer: A.

Explanation: [FACT] The circuit arrangement at Port Blair does not create a separate High Court.

OM14. DNHDD jurisdiction

Dadra and Nagar Haveli and Daman and Diu fall under:

A. Gujarat High Court. B. Bombay High Court. C. Delhi High Court. D. Madras High Court.

Answer: B.

Explanation: [FACT] The merged UT continues under Bombay High Court jurisdiction.

OM15. Lakshadweep jurisdiction

Lakshadweep falls under:

A. Karnataka High Court. B. Madras High Court. C. Kerala High Court. D. Calcutta High Court.

Answer: C.

Explanation: [FACT] Do not confuse Lakshadweep with Puducherry's Madras High Court link.

OM16. Puducherry jurisdiction

Puducherry falls under:

A. Calcutta High Court. B. Bombay High Court. C. Kerala High Court. D. Madras High Court.

Answer: D.

Explanation: [FACT] Puducherry has an Assembly but not its own High Court.

OM17. Common J&K-Ladakh court

The correct current institutional description is:

A. High Court of Jammu & Kashmir and Ladakh is common to both UTs. B. Ladakh has no High Court jurisdiction. C. Both are under Punjab and Haryana High Court. D. J&K and Ladakh each have a separate High Court.

Answer: A.

Explanation: [CURRENT] The official name expressly includes both territories.

OM18. Legislature set

Which set contains all current UTs with legislatures?

A. Delhi, Jammu and Kashmir, Ladakh. B. Delhi, Puducherry, Jammu and Kashmir. C. Delhi, Puducherry, Chandigarh. D. Puducherry, J&K, Andaman and Nicobar Islands.

Answer: B.

Explanation: [CURRENT] Ladakh, Chandigarh and A&N do not have territorial legislatures.

OM19. Delhi exclusions

Which group is excluded from Delhi Assembly's ordinary State-List competence?

A. land, education and electricity. B. agriculture, irrigation and markets. C. public order, police and land. D. prisons, public health and local government.

Answer: C.

Explanation: [FACT] These correspond to Entries 1, 2 and 18 plus related entries.

OM20. J&K exclusions

Under section 32 of the J&K Reorganisation Act, the Assembly is excluded from:

A. land and agriculture. B. forests and water. C. education and local government. D. public order and police.

Answer: D.

Explanation: [FACT] Unlike Delhi, land is not a blanket excluded field.

OM21. Puducherry competence

Which statement best states section 18 of the Government of Union Territories Act, 1963?

A. Puducherry's Assembly may legislate on applicable State and Concurrent List matters, subject to the Act. B. It may legislate only on the Concurrent List. C. It has no taxation competence. D. Parliament loses State-List competence after the Assembly is created.

Answer: A.

Explanation: [FACT] Parliament's power is expressly preserved by section 18(2).

OM22. Delhi parliamentary power

Article 239AA provides that:

A. Presidential assent permanently immunises a Delhi law from Parliament. B. Parliament's NCT competence continues and its law can prevail under the constitutional scheme. C. Parliament cannot legislate on Delhi State-List matters. D. the Delhi Assembly is sovereign in all non-reserved fields.

Answer: B.

Explanation: [FACT] Parliament can later add to, amend, vary or repeal even a reserved local law that received assent.

OM23. 2018 reference power

The 2018 Constitution Bench held that the phrase "any matter" in Article 239AA(4):

A. eliminates the need for ministerial advice. B. means every administrative decision. C. does not mean every matter; reference is an exceptional power. D. transfers all disputes directly to the Supreme Court.

Answer: C.

Explanation: [FACT] The LG must not mechanically refer every decision and should seek dialogue.

OM24. Delhi services judgment (2023)

The Court held in May 2023 that:

A. Parliament has no competence over Delhi services. B. services are outside every UT's constitutional framework. C. Delhi controls police services. D. NCTD had legislative and executive power over Entry 41 services outside public order, police and land.

Answer: D.

Explanation: [FACT] This judicial position must now be read with the later 2023 Act.

OM25. NCCSA composition

The NCCSA consists of:

A. Chief Minister, Chief Secretary and Principal Home Secretary. B. Chief Minister and two elected MLAs. C. Union Home Minister, LG and Chief Minister. D. LG, Chief Minister and Speaker.

Answer: A.

Explanation: [FACT] The Chief Minister chairs; the two senior officials are members, with the Home Secretary as Member-Secretary.

OM26. NCCSA disagreement

Under section 45H after reconsideration:

A. the Chief Minister's view is automatically final. B. the LG's decision is final where difference persists. C. the recommendation lapses without decision. D. the Speaker decides.

Answer: B.

Explanation: [FACT] The LG must record reasons when returning a recommendation; persistent disagreement ends with the LG's decision.

OM27. Puducherry nomination

Who may nominate up to three persons to Puducherry's Legislative Assembly under section 3(3)?

A. Lieutenant Governor personally. B. Election Commission of India. C. Central Government. D. Chief Minister.

Answer: C.

Explanation: [FACT] The Supreme Court upheld this statutory allocation in *K. Lakshminarayanan (2018)*.

OM28. Nominated-member vote

The Supreme Court's Puducherry ruling held that nominated members:

A. cannot vote on the budget. B. may vote only on ordinary Bills. C. cannot vote in a no-confidence motion. D. may vote on all questions, including budget and no-confidence.

Answer: D.

Explanation: [FACT] The Court relied on the Act's treatment of all Assembly members and all questions.

OM29. Puducherry and Article 240

When Puducherry's Legislature is dissolved or its functioning suspended:

A. the President may make Article 240 regulations during that period. B. Parliament loses law-making power. C. the Administrator alone uses Article 213. D. Article 240 permanently ceases to apply.

Answer: A.

Explanation: [FACT] This is the second proviso to Article 240(1).

OM30. J&K current institution

Which proposition is accurate at the control date?

A. the Assembly controls police. B. J&K has an elected Assembly and Council of Ministers after the 2024 election. C. J&K has never held a UT Assembly election. D. J&K Statehood automatically returned with the election.

Answer: B.

Explanation: [CURRENT] The official 2026-27 Budget Speech independently evidences a functioning elected House and government.

OM31. Statehood control

Which statement is legally correct?

A. Statehood returned when the 2024 result was declared. B. The Supreme Court itself converted J&K back into a State in 2023. C. Statehood remains pending; the Court directed earliest restoration without a fixed date. D. J&K has a constitutional right to a specified restoration year.

Answer: C.

Explanation: [CURRENT] No enacted restoration or appointed-day legal change was located by 5 September 2026.

OM32. J&K 2024 business rules

The Second Amendment Rules, 2024 principally:

A. transferred police to the Assembly. B. restored Statehood. C. abolished the J&K Assembly. D. prescribed LG-routing/approval channels for specified police, public order, AIS, ACB, legal and senior-posting matters.

Answer: D.

Explanation: [FACT] The rules operationalise the wider discretion already present in section 53.

OM33. Dual-capacity trap

When a State Governor is appointed Administrator of an adjoining UT:

A. the Governor acts in the UT capacity independently of the State CoM. B. the UT becomes part of the State. C. Article 239 ceases to apply. D. the State CoM controls the UT.

Answer: A.

Explanation: [FACT] Article 239(2) expressly separates the capacities.

OM34. Strategic-rationale inference

Which is the best constitutional analysis?

A. Strategic importance removes fundamental rights. B. Strategic importance may justify stronger Union coordination, but authority remains legally bounded and reviewable. C. Every border territory must be a UT. D. A UT cannot have elected local bodies.

Answer: B.

Explanation: [ANALYSIS] Rationale explains differentiation; it does not create a rights-free zone.

OM35. Merger recall

Which event reduced the UT count from nine to eight?

A. Puducherry's renaming. B. J&K becoming a UT. C. Merger of DNH with Daman and Diu from 26 January 2020. D. Ladakh becoming a UT.

Answer: C.

Explanation: [FACT] J&K reorganisation first increased the count; the later merger reduced it.

OM36. Best evaluation

Which conclusion most accurately evaluates UTs with legislatures?

A. Parliament loses overriding competence. B. They are legally identical to States. C. Their Assemblies are merely advisory. D. They provide real but bounded self-government within a continuing Union-administered framework.

Answer: D.

Explanation: [ANALYSIS] The exact boundary differs among Delhi, Puducherry and J&K.

Remedial MCQs - strict continuation A -> C -> A -> D rotation

RM1. Eight-UT list

Which list contains no stale or duplicate territory?

A. A&N, Chandigarh, DNHDD, Delhi, J&K, Ladakh, Lakshadweep, Puducherry. B. A&N, Chandigarh, Delhi, J&K, Goa, Ladakh, Lakshadweep, Puducherry. C. A&N, Chandigarh, DNHDD, Delhi, J&K, Ladakh, Lakshadweep. D. A&N, Chandigarh, DNH, Daman and Diu, Delhi, J&K, Ladakh, Lakshadweep, Puducherry.

Answer: A.

Explanation: [CURRENT] Option D double-counts the merged UT and therefore gives nine.

RM2. Three Assembly bases

Which matching is correct?

A. All three derive solely from Article 246(4). B. Delhi-239AA; Puducherry-239A/1963 Act; J&K-2019 Act with section 13 application of 239A. C. Delhi-239A; Puducherry-239AA; J&K-Article 240. D. Delhi-Article 356; Puducherry-Article 371; J&K-239B.

Answer: B.

Explanation: [FACT] The legal-source distinction is central to the topic.

RM3. Regulation exclusion

Which UT should be removed from an Article 240 list?

A. Andaman and Nicobar Islands. B. Lakshadweep. C. Chandigarh. D. Dadra and Nagar Haveli and Daman and Diu.

Answer: C.

Explanation: [FACT] Chandigarh is the recurring close-option trap.

RM4. Delhi services current law

The safest present statement is:

A. the 2018 judgment alone gives Delhi all service control. B. NCCSA recommendations bind the LG without exception. C. the 2023 judgment transferred police officers to Delhi. D. the 2023 Act creates an NCCSA process and gives the LG final authority on persistent disagreement.

Answer: D.

Explanation: [CURRENT] The constitutional challenge does not by itself displace the enacted statute.

RM5. J&K and land

Which distinction is correct?

A. Delhi excludes land; J&K's section 32 does not blanket-exclude land. B. Neither excludes police. C. J&K excludes land but Delhi does not. D. Both exclude land.

Answer: A.

Explanation: [FACT] Delhi has three express exclusions; J&K has two.

RM6. Chief Minister appointment

Which matching is accurate?

A. Delhi-LG; Puducherry-LG; J&K-President. B. Delhi-President; Puducherry-President; J&K-LG. C. all three-LG. D. all three-President.

Answer: B.

Explanation: [FACT] The differing appointment routes reinforce non-uniformity.

RM7. Puducherry confidence vote

Under *K. Lakshminarayanan (2018)*, a nominated Puducherry member:

A. is excluded from quorum. B. cannot vote on supply. C. may vote on a no-confidence motion. D. loses membership on joining debate.

Answer: C.

Explanation: [FACT] The Court rejected special voting exclusions not written into section 12.

RM8. Judicial map

Which pair is incorrectly matched?

A. Puducherry-Madras High Court. B. A&N-Calcutta High Court. C. Lakshadweep-Kerala High Court. D. Chandigarh-Delhi High Court.

Answer: D.

Explanation: [FACT] Chandigarh is under Punjab and Haryana High Court.

RM9. Parliament after a UT Assembly

Creation of a UT legislature:

A. does not extinguish Parliament's Article 246(4) competence. B. converts the UT into a State. C. creates exclusive State-List power identical to a State. D. prevents future parliamentary law.

Answer: A.

Explanation: [FACT] This remains true for all three legislated UT models.

RM10. Delhi reference discipline

The 2018 judgment requires the LG to:

A. exercise all executive power independently. B. use reference exceptionally, with rationale and an effort at dialogue. C. refer every Cabinet decision. D. ignore presidential decisions.

Answer: B.

Explanation: [FACT] "Any matter" was not read as "every matter".

RM11. Evidence of current J&K Assembly

Which is the strongest named official evidence that elected government is functioning in 2026?

A. the 2019 Bill's statement of objects alone. B. an undated political speech. C. the official J&K Budget 2026-27 speech by the Chief Minister/Finance Minister to the House. D. a generic news summary.

Answer: C.

Explanation: [CURRENT] It directly records a sitting elected executive presenting finance to the Legislature.

RM12. Answer-writing discipline

The strongest structure for a Delhi-services answer is:

A. Article list without legal sequence. B. judgement slogan -> conclusion. C. political allegation -> unsourced statistic. D. Article 239AA -> 2018 holding -> May 2023 services holding -> Act 19 of 2023/NCCSA -> pending-challenge qualification.

Answer: D.

Explanation: [ANALYSIS] The sequence preserves claim, named evidence, analysis and current legal qualification.

PYQS AND ANSWER PRACTICE

Verified routed PYQs

PYQ 1 - UPSC GS-II 2018, Q11

Verified question: Whether the Supreme Court Judgement (July 2018) can settle the political tussle between the Lt. Governor and elected government of Delhi? Examine. **15 marks | 250 words | Directive: Examine**

Demand decoding

- "Can settle" requires an extent judgement, not a summary of the case.
- "Political tussle" requires constitutional rule plus structural and behavioural limits.
- A current solved answer may use later developments to test whether the 2018 settlement proved complete.

Model solution

Thesis: [FACT] The July 2018 Constitution Bench settled the governing constitutional principle: within Delhi's legislative field, the LG is ordinarily bound by the elected CoM's aid and advice. [ANALYSIS] It could reduce legal ambiguity but could not eliminate conflict built into the national-capital design.

What the Court settled: [FACT] Article 239AA gives Delhi competence over State and Concurrent List matters except public order, police and land. The Court held executive power co-extensive with this field; the LG has no independent decision-making power; "any matter" is not "every matter"; and presidential reference must be exceptional, reasoned and preceded by dialogue. [ANALYSIS] This protects collective responsibility and prevents routine administrative veto.

Why the tussle could persist: [FACT] Parliament retains competence over every NCT subject and may override local law. The three reserved fields remain Union-controlled. Article 239AA(4) still contains a reference mechanism. [ANALYSIS] Divided authority therefore survives the judgment.

Later named evidence: [FACT] The May 2023 Constitution Bench located services in Entry 41 and gave NCTD executive control outside the reserved fields. Parliament then enacted the GNCTD Amendment Act, 2023, creating NCCSA and making the LG's decision final on a continuing disagreement. [ANALYSIS] The sequel proves that judicial principle alone did not settle the institutional contest.

Qualification: [LIMIT] Union control is not inherently unconstitutional in a national capital; intervention must remain textually grounded and non-obstructionist.

Verdict: The judgment settled the norm of representative primacy within Delhi's sphere, not the politics or all legal instruments of shared rule. Durable settlement requires statutory clarity, constitutional trust and accountable use of reserved powers.

Why this earns marks: It answers the extent question, uses Article 239AA and the operative 2018 propositions, tests them against the named 2023 sequel and ends with a qualified verdict.

How to improve: For 250 words, organise the answer as constitutional field -> 2018 ratio -> 2023 services holding -> operative 2023 statute -> qualified verdict; do not narrate litigation without evaluating the shift.

Demand decoding: The directive **answer** requires a direct position on "PYQ 1 - UPSC GS-II 2018, Q11", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "PYQ 1 - UPSC GS-II 2018, Q11".

Analytical body:

1. **Claim and named evidence:** Verified question: Whether the Supreme Court Judgement (July 2018) can settle the political tussle between the Lt. Governor and elected government of Delhi? Examine. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

2. **Claim and named evidence:** "Can settle" requires an extent judgement, not a summary of the case. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** "Political tussle" requires constitutional rule plus structural and behavioural limits. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** A current solved answer may use later developments to test whether the 2018 settlement proved complete. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Qualification: [LIMIT] Union control is not inherently unconstitutional in a national capital; intervention must remain textually grounded and non-obstructionist. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "PYQ 1 - UPSC GS-II 2018, Q11".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

How to improve this answer: For "PYQ 1 - UPSC GS-II 2018, Q11", replace the weakest generalisation with one named community, region, institution, movement or source-dated dataset and state what that evidence cannot establish.

PYQ 2 - UPSC GS-II 2025, Q4

Verified question from the locally held official paper: Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir. **10 marks | 150 words | Directive: Discuss and briefly describe**

Demand decoding

- "Nature" requires classification as a statutory UT legislature, not a State legislature.
- "Powers and functions" requires legislation, finance and accountability.
- The current answer must acknowledge the elected Assembly after 2024 without claiming Statehood.

Model solution

Thesis: [FACT] The 2019 Act created a statutory legislature for the UT of J&K and applied Article 239A's provisions through section 13. [ANALYSIS] It restores representative government but remains weaker than a State Assembly.

Legislative power: [FACT] Section 32 permits laws on applicable State and Concurrent List matters except public order and police; land is not blanket-excluded. Parliament nevertheless retains competence over every UT subject, and section 35 gives parliamentary law priority.

Functions: [FACT] The Assembly legislates, debates policy, grants supply, authorises appropriation, examines CAG reports, exercises privileges and holds the Chief Minister-led CoM collectively responsible. Bills pass through LG assent/reservation routes.

Current institutional evidence: [CURRENT] Elections were held in 2024; the official Budget 2026-27 was presented by the elected Chief Minister/Finance Minister to the House.

Qualification: [LIMIT] LG discretion over excluded fields, AIS/ACB and specified business-rule matters remains substantial; Statehood is pending.

Verdict: J&K has democratic self-government within a Union-weighted statutory framework, not restored State-level federal autonomy.

Why this earns marks: It classifies the institution, names sections and functions, supplies current evidence and directly qualifies the extent of autonomy.

How to improve: For 150 words, spend one sentence on statutory origin, two on legislative/executive powers, one on current elected functioning and one on the Statehood limitation.

Demand decoding: The directive **answer** requires a direct position on "PYQ 2 - UPSC GS-II 2025, Q4", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "PYQ 2 - UPSC GS-II 2025, Q4".

Analytical body:

1. **Claim and named evidence:** marks 150 words Directive: Discuss and briefly describe **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** "Nature" requires classification as a statutory UT legislature, not a State legislature. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** "Powers and functions" requires legislation, finance and accountability. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

4. **Claim and named evidence:** The current answer must acknowledge the elected Assembly after 2024 without claiming Statehood. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Current institutional evidence: [CURRENT] Elections were held in 2024; the official Budget 2026-27 was presented by the elected Chief Minister/Finance Minister to the House. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "PYQ 2 - UPSC GS-II 2025, Q4".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

How to improve this answer: For "PYQ 2 - UPSC GS-II 2025, Q4", replace the weakest generalisation with one named community, region, institution, movement or source-dated dataset and state what that evidence cannot establish.

PYQ coverage control

- [FACT] The audited local ledgers route these two direct Mains demands to Union Territories.
- [LIMIT] No additional direct Union-Territories Prelims PYQ was found in the audited 2018-2026 routing ledgers. No objective key or question has been invented to inflate coverage.

Original solved Mains practice

M1. Explain the constitutional rationale for Union Territories and distinguish direct administration from a UT with a legislature. (10 marks, 150 words)

Model solution

Thesis: [ANALYSIS] Union Territories are devices of differentiated territorial governance: the Constitution permits stronger Union supervision where capital, strategic, historical or scale considerations make the ordinary State model unsuitable.

Direct administration: [FACT] Article 239 places a UT under the President acting through an Administrator. Article 246(4) lets Parliament legislate even on State-List matters. For specified territories, Article 240 permits presidential regulations. [ANALYSIS] A&N, Lakshadweep and Ladakh illustrate Union-led administration shaped by strategic geography.

Legislature model: [FACT] Delhi has a constitutionally entrenched Assembly under Article 239AA; Puducherry has a statutory Assembly under Article 239A and the 1963 Act; J&K has a statutory Assembly under the 2019 Act. These bodies legislate, vote supply and hold Councils responsible. [ANALYSIS] Yet Parliament retains overriding competence and the LG/Administrator retains special powers.

Qualification: [LIMIT] UT status does not eliminate local bodies, rights or judicial review under Article 241.

Verdict: The distinction is between Union administration with local representation and bounded territorial self-government, not between government and no government.

Why this earns marks: It explains rationale, names the governing Articles, compares the two categories and avoids treating every UT as identical.

How to improve: Use a three-column State-UT with legislature-UT without legislature comparison and reserve the conclusion for a proportionality test linking Union interest with democratic accountability.

Demand decoding: The directive **explain** requires a direct position on "M1. Explain the constitutional rationale for Union Territories and distinguish direct...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M1. Explain the constitutional rationale for Union Territories and distinguish direct administration from a UT with a legislature. (10 marks, 150...)".

Analytical body:

1. **Claim and named evidence:** M1. Explain the constitutional rationale for Union Territories and distinguish direct administration from a UT with a legislature. (10 marks, 150 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Qualification: [LIMIT] UT status does not eliminate local bodies, rights or judicial review under Article 241. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Verdict: The distinction is between Union administration with local representation and bounded territorial self-government, not between government and no government. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Why this earns marks: It explains rationale, names the governing Articles, compares the two categories and avoids treating every UT as identical. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** How to improve: Use a three-column State-UT with legislature-UT without legislature comparison and reserve the conclusion for a proportionality test linking Union interest with democratic accountability. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M1. Explain the constitutional rationale for Union Territories and distinguish direct administration from a UT with a legislature. (10 marks, 150...)".

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

How to improve this answer: For "M1. Explain the constitutional rationale for Union Territories and distinguish direct...", replace the weakest generalisation with one named community, region, institution, movement or source-dated dataset and state what that evidence cannot establish.

M2. Article 240 is an exceptional law-making mechanism, not a general synonym for Union Territory administration. Explain. (10 marks, 150 words)

Model solution

Thesis: [FACT] Article 239 is the general administrative rule; Article 240 is a narrower presidential power to make regulations for specified territories.

Scope: Article 240 expressly covers A&N, Lakshadweep, DNHDD and Puducherry; section 58 of the J&K Reorganisation Act applies the route to Ladakh. [FACT] Chandigarh, Delhi and the J&K UT-with-legislature are not governed through this general regulation list.

Effect: [FACT] A regulation may amend or repeal an applicable parliamentary Act or other law and has the force of an Act of Parliament in the territory. [ANALYSIS] It is therefore direct primary territorial legislation, not an ordinary executive rule.

Puducherry condition: Once its Legislature functions, the President cannot use Article 240; the power revives during dissolution or suspension. Article 239B ordinances, conversely, cannot be made during that suspension.

Qualification: [LIMIT] Regulations remain subject to the Constitution and judicial review.

Verdict: Article 240 is a territory-specific legislative safety mechanism nested inside, but distinct from, Article 239 administration.

Why this earns marks: It separates source, territories, legal effect and Puducherry's switch between representative and direct law-making.

How to improve: Name Article 240 territories precisely, distinguish Puducherry's conditional revival and explain why a presidential regulation is stronger than ordinary delegated legislation.

Demand decoding: The directive **explain** requires a direct position on "M2. Article 240 is an exceptional law-making mechanism, not a general synonym for Union...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M2. Article 240 is an exceptional law-making mechanism, not a general synonym for Union Territory administration. Explain. (10 marks, 150 words)".

Analytical body:

- 1. Claim and named evidence:** M2. Article 240 is an exceptional law-making mechanism, not a general synonym for Union Territory administration. Explain. (10 marks, 150 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Thesis: [FACT] Article 239 is the general administrative rule; Article 240 is a narrower presidential power to make regulations for specified territories. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** Puducherry condition: Once its Legislature functions, the President cannot use Article 240; the power revives during dissolution or suspension. Article 239B ordinances, conversely, cannot be made during that suspension. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 4. Claim and named evidence:** Qualification: [LIMIT] Regulations remain subject to the Constitution and judicial review. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 5. Claim and named evidence:** Verdict: Article 240 is a territory-specific legislative safety mechanism nested inside, but distinct from, Article 239 administration. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power,

agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M2. Article 240 is an exceptional law-making mechanism, not a general synonym for Union Territory administration. Explain. (10 marks, 150 words)".

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

How to improve this answer: For "M2. Article 240 is an exceptional law-making mechanism, not a general synonym for Union...", replace the weakest generalisation with one named community, region, institution, movement or source-dated dataset and state what that evidence cannot establish.

M3. Compare the legislatures of Delhi, Puducherry and Jammu and Kashmir. Why is the category "Union Territory with legislature" internally unequal? (15 marks, 250 words)

Model solution

Thesis: [ANALYSIS] All three legislatures supply representation and responsible government, but different constitutional sources, excluded fields and Administrator powers produce three unequal models.

Delhi: [FACT] Article 239AA constitutionally creates the NCT Assembly. It covers applicable State and Concurrent List matters except public order, police and land. Parliament retains all-subject competence and Article 239AA(4) supplies an LG-President reference route. [CURRENT] Services now operate under the 2023 NCCSA statute.

Puducherry: [FACT] Article 239A enables, and the 1963 Act creates, thirty elected plus up to three nominated members. Section 18 grants applicable State/Concurrent competence; sections 21, 44 and 50 preserve parliamentary supremacy, Administrator-President control and difference reference. [FACT] *K. Lakshminarayanan (2018)* confirms nominees' full voting role.

J&K: [FACT] The 2019 Act creates a statutory Assembly and applies Article 239A through section 13. Section 32 excludes public order and police, not blanket land. Sections 53 and the 2024 rules give the LG significant discretion over AIS/ACB and specified routed matters. [CURRENT] The Assembly functions after the 2024 election.

Common core: legislation, budget, scrutiny and collective responsibility. **Common limit:** Article 246(4) and parliamentary override.

Qualification: [LIMIT] Delhi's constitutional entrenchment does not make it a State; J&K's elected restoration does not itself restore Statehood.

Verdict: "UT with legislature" is a family of asymmetric compromises ranging from constitutional NCT government to Parliament-designed statutory self-government.

Why this earns marks: It compares legal source, competence, executive relation and current status rather than offering three disconnected descriptions.

How to improve: Compare Delhi, Puducherry and J&K under four fixed heads-legal source, excluded fields, Administrator relationship and parliamentary override-then add one dated status line.

Demand decoding: The directive **compare** requires a direct position on "M3. Compare the legislatures of Delhi, Puducherry and Jammu and Kashmir. Why is the category...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M3. Compare the legislatures of Delhi, Puducherry and Jammu and Kashmir. Why is the category "Union Territory with legislature" internally unequal?...".

Analytical body:

1. **Claim and named evidence:** M3. Compare the legislatures of Delhi, Puducherry and Jammu and Kashmir. Why is the category "Union Territory with legislature" internally unequal? (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or

policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

2. **Claim and named evidence:** Thesis: [ANALYSIS] All three legislatures supply representation and responsible government, but different constitutional sources, excluded fields and Administrator powers produce three unequal models. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Common core: legislation, budget, scrutiny and collective responsibility. Common limit: Article 246(4) and parliamentary override. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Qualification: [LIMIT] Delhi's constitutional entrenchment does not make it a State; J&K's elected restoration does not itself restore Statehood. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Verdict: "UT with legislature" is a family of asymmetric compromises ranging from constitutional NCT government to Parliament-designed statutory self-government. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M3. Compare the legislatures of Delhi, Puducherry and Jammu and Kashmir. Why is the category "Union Territory with legislature" internally unequal?...".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

How to improve this answer: For "M3. Compare the legislatures of Delhi, Puducherry and Jammu and Kashmir. Why is the category...", replace the weakest generalisation with one named community, region, institution, movement or source-dated dataset and state what that evidence cannot establish.

M4. "The 2018 Delhi judgment protected representative government, but the 2023 developments reconfigured its operational content." Critically examine. (15 marks, 250 words)

Model solution

Thesis: [FACT] The 2018 Constitution Bench made aid and advice the rule and LG reference the exception; [ANALYSIS] the 2023 judgment extended that logic to services, while the later statute shifted the operational balance toward an NCCSA-LG model.

2018 constitutional principle: Article 239AA creates a directly elected Assembly and CoM. The Court held executive power co-extensive with legislative competence, the LG without independent decision power and "any matter" not "every matter". [ANALYSIS] This protected collective responsibility and limited administrative obstruction.

May 2023 extension: [FACT] Entry 41 services was not among public order, police and land. The Court therefore gave NCTD legislative/executive services power and linked officer control to the triple chain of accountability.

Legislative reconfiguration: [FACT] Act 19 of 2023 created NCCSA with the Chief Minister and two senior officials, majority decision, recommendations to the LG and final LG authority upon persistent disagreement. [ANALYSIS] Services control became institutionally shared but Union-weighted.

Critical balance: Parliament's Article 239AA/246 power supports legislation for the capital; however, frequent displacement of the elected chain can blur answerability. Conversely, national-capital security and all-India service coordination are legitimate concerns.

Qualification: [LIMIT] The Act's constitutional challenge remains unresolved; pending litigation is not invalidation.

Verdict: 2018 remains the constitutional grammar of representative government, but current services administration must be stated through the 2023 statute until judicially altered.

Why this earns marks: It preserves chronological and doctrinal sequence, presents both legitimacy arguments and states the exact current-law limitation.

How to improve: Compress the litigation chronology into 2018 principle, May 2023 services holding and August 2023 statutory response; separate constitutional validity from policy desirability.

Demand decoding: The directive **answer** requires a direct position on "M4. "The 2018 Delhi judgment protected representative government, but the 2023 developments...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M4. "The 2018 Delhi judgment protected representative government, but the 2023 developments reconfigured its operational content." Critically..."

Analytical body:

1. **Claim and named evidence:** M4. "The 2018 Delhi judgment protected representative government, but the 2023 developments reconfigured its operational content." Critically examine. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Qualification: [LIMIT] The Act's constitutional challenge remains unresolved; pending litigation is not invalidation. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Verdict: 2018 remains the constitutional grammar of representative government, but current services administration must be stated through the 2023 statute until judicially altered. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Why this earns marks: It preserves chronological and doctrinal sequence, presents both legitimacy arguments and states the exact current-law limitation. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** How to improve: Compress the litigation chronology into 2018 principle, May 2023 services holding and August 2023 statutory response; separate constitutional validity from policy desirability. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M4. "The 2018 Delhi judgment protected representative government, but the 2023 developments reconfigured its operational content." Critically..."

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named

evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

How to improve this answer: For "M4. "The 2018 Delhi judgment protected representative government, but the 2023 developments...", replace the weakest generalisation with one named community, region, institution, movement or source-dated dataset and state what that evidence cannot establish.

M5. Evaluate the democratic and constitutional implications of nominated members in the Puducherry Legislative Assembly. (15 marks, 250 words)

Model solution

Thesis: [FACT] Article 239A expressly permits a partly nominated legislature and section 3(3) of the 1963 Act allows the Central Government to nominate up to three members. [ANALYSIS] The arrangement is constitutional and statutory, but its influence over confidence and supply raises democratic-design concerns.

Constitutional case: Puducherry is a UT, not a State; Parliament may define the Assembly's composition. Nominees can supply expertise or representation without a separate election. [FACT] *K. Lakshminarayanan (2018)* found no legal requirement of Chief Ministerial concurrence.

Voting effect: The Court read section 12's "all questions" and "members present and voting" to include nominees in budget and no-confidence votes. [ANALYSIS] Since such votes determine government survival, Union nomination can affect the elected executive's stability.

Democratic concern: appointment without local electoral accountability may alter majority arithmetic and encourage partisan distrust. The absence of a consultation requirement intensifies this risk.

Counterpoint: [LIMIT] Judicial interpretation cannot add restrictions omitted by Parliament; nominated members are legally full members, not second-class participants.

Reform options: transparent eligibility and reasons; pre-notified timelines; conflict-of-interest disclosure; convention of broad consultation; parliamentary review if the representational purpose is no longer served.

Verdict: The design is legally valid but democratically sensitive; legitimacy depends on transparent, representational rather than tactical use of nomination.

Why this earns marks: It separates validity from desirability, names the Act and case, explains the confidence-vote mechanism and offers legally compatible safeguards.

How to improve: Anchor the answer in Section 3(3) and *K. Lakshminarayanan (2018)*, then evaluate voting power, confidence consequences and safeguards without implying nominated members lack full voting rights.

Demand decoding: The directive **evaluate** requires a direct position on "M5. Evaluate the democratic and constitutional implications of nominated members in the...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M5. Evaluate the democratic and constitutional implications of nominated members in the Puducherry Legislative Assembly. (15 marks, 250 words)".

Analytical body:

- 1. Claim and named evidence:** M5. Evaluate the democratic and constitutional implications of nominated members in the Puducherry Legislative Assembly. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Democratic concern: appointment without local electoral accountability may alter majority arithmetic and encourage partisan distrust. The absence of a consultation requirement intensifies this risk. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** Counterpoint: [LIMIT] Judicial interpretation cannot add restrictions omitted by Parliament; nominated members are legally full members, not second-class participants. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Reform options: transparent eligibility and reasons; pre-notified timelines; conflict-of-interest disclosure; convention of broad consultation; parliamentary review if the representational purpose is no longer served. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Verdict: The design is legally valid but democratically sensitive; legitimacy depends on transparent, representational rather than tactical use of nomination. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M5. Evaluate the democratic and constitutional implications of nominated members in the Puducherry Legislative Assembly. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

How to improve this answer: For "M5. Evaluate the democratic and constitutional implications of nominated members in the...", replace the weakest generalisation with one named community, region, institution, movement or source-dated dataset and state what that evidence cannot establish.

M6. Assess the nature and democratic significance of the Jammu and Kashmir Assembly after the 2024 election. (15 marks, 250 words)

Model solution

Thesis: [CURRENT] The 2024 election restored an elected Assembly and CoM within J&K's UT framework; [ANALYSIS] this is substantial democratic restoration but incomplete federal restoration.

Nature: [FACT] Sections 13-14 of the 2019 Act apply Article 239A and create a statutory UT legislature. It is not a Part VI State legislature. Section 32 grants applicable State/Concurrent competence except public order and police; Parliament retains all-subject power under Article 246(4).

Functions: It makes laws, authorises taxation and expenditure, debates policy, examines audit material and holds the CoM collectively responsible. The official 2026-27 Budget presentation by the Chief Minister/Finance Minister to the House demonstrates functioning financial accountability.

Limits: [FACT] section 53 gives the LG discretion outside the Assembly field and in AIS/ACB matters; the 2024 business rules route specified policing, prosecution, legal-officer and senior-posting matters through the LG. Parliamentary law prevails under section 35.

Democratic significance: Elections restore voice, opposition, public debate and ministerial answerability after a long institutional gap. [ANALYSIS] Yet responsibility may still exceed control where officers or reserved subjects lie outside the elected chain.

Qualification: [LIMIT] *In Re Article 370* directed elections and earliest statehood restoration but fixed no statehood date; Statehood remains pending.

Verdict: The Assembly is meaningful self-government under Union supervision, not symbolic, but only Statehood can restore full constituent-unit parity.

Why this earns marks: It uses the current election and budget as evidence, distinguishes democracy from federal status and identifies the exact LG/Parliament limits.

How to improve: Use the 2024 election and 2026-27 Budget only as dated evidence of functioning democracy; contrast that with reserved subjects, LG powers and pending Statehood.

Demand decoding: The directive **assess** requires a direct position on "M6. Assess the nature and democratic significance of the Jammu and Kashmir Assembly after the...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M6. Assess the nature and democratic significance of the Jammu and Kashmir Assembly after the 2024 election. (15 marks, 250 words)".

Analytical body:

- 1. Claim and named evidence:** M6. Assess the nature and democratic significance of the Jammu and Kashmir Assembly after the 2024 election. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Thesis: [CURRENT] The 2024 election restored an elected Assembly and CoM within J&K's UT framework; [ANALYSIS] this is substantial democratic restoration but incomplete federal restoration. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** Qualification: [LIMIT] In Re Article 370 directed elections and earliest statehood restoration but fixed no statehood date; Statehood remains pending. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 4. Claim and named evidence:** Verdict: The Assembly is meaningful self-government under Union supervision, not symbolic, but only Statehood can restore full constituent-unit parity. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 5. Claim and named evidence:** Why this earns marks: It uses the current election and budget as evidence, distinguishes democracy from federal status and identifies the exact LG/Parliament limits. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M6. Assess the nature and democratic significance of the Jammu and Kashmir Assembly after the 2024 election. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

How to improve this answer: For "M6. Assess the nature and democratic significance of the Jammu and Kashmir Assembly after the...", replace the weakest generalisation with one named community, region, institution, movement or source-dated dataset and state what that evidence cannot establish.

M7. "Union Territory asymmetry is administratively useful but democratically costly." Critically examine with reference to Delhi, Puducherry, Jammu and Kashmir and UTs without legislatures. (20 marks, 250 words)

Model solution

Thesis: [ANALYSIS] UT asymmetry lets India tailor government to national-capital, island, frontier and historical needs, but its democratic cost rises when electoral responsibility is separated from control over law, officers and finance.

Administrative utility: [FACT] Article 239 enables unified presidential administration; Article 240 supports direct law-making for specified small/strategic territories. A&N and Lakshadweep require island-wide coordination; Chandigarh serves a shared-capital function; Ladakh combines frontier and ecological constraints. Delhi's reserved public order, police and land fields protect national-capital interests.

Representative adaptation: Article 239A/239AA and the 2019 Act show that central control can coexist with elected government. Puducherry retains a broad local legislative field; J&K has a functioning Assembly; Delhi has constitutionally entrenched representation.

Democratic costs: Delhi's NCCSA can leave ministers electorally liable without final service control. Puducherry's centrally nominated members may influence supply and confidence. J&K's LG discretion and business routing narrow the elected chain. Non-legislature UTs rely on local bodies and advisory forums rather than territorial law-making.

Constitutional safeguards: Article 241 judicial review, legislative scrutiny, collective responsibility and reasoned-reference duties prevent unbounded administration.

Counterpoint: [LIMIT] uniform Statehood is not always feasible or desired; national security, scale and minority protection can justify difference.

Reform principle: define reserved fields narrowly; publish decision reasons; align officers with accountable ministers where possible; strengthen local consultation; periodically review whether direct administration remains proportionate.

Verdict: Asymmetry is defensible as calibrated governance, not as permanent democratic discount.

Why this earns marks: It covers four models, supplies named legal mechanisms, balances utility and cost and derives a proportional reform test.

How to improve: Classify each model before evaluating it; use one benefit, one democratic cost and one tailored reform for direct administration, Delhi, Puducherry and J&K.

Demand decoding: The directive **critically examine** requires a direct position on "M7. "Union Territory asymmetry is administratively useful but democratically costly."...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M7. "Union Territory asymmetry is administratively useful but democratically costly." Critically examine with reference to Delhi, Puducherry, Jammu..."

Analytical body:

- Claim and named evidence:** M7. "Union Territory asymmetry is administratively useful but democratically costly." Critically examine with reference to Delhi, Puducherry, Jammu and Kashmir and UTs without legislatures. (20 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** Constitutional safeguards: Article 241 judicial review, legislative scrutiny, collective responsibility and reasoned-reference duties prevent unbounded administration. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy

implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** Counterpoint: [LIMIT] uniform Statehood is not always feasible or desired; national security, scale and minority protection can justify difference. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication.

Qualification: State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

4. **Claim and named evidence:** Verdict: Asymmetry is defensible as calibrated governance, not as permanent democratic discount. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** Why this earns marks: It covers four models, supplies named legal mechanisms, balances utility and cost and derives a proportional reform test. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication.

Qualification: State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M7. "Union Territory asymmetry is administratively useful but democratically costly." Critically examine with reference to Delhi, Puducherry, Jammu..."

Executable exam-length answer / compression plan: For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

How to improve this answer: For "M7. "Union Territory asymmetry is administratively useful but democratically costly."...", replace the weakest generalisation with one named community, region, institution, movement or source-dated dataset and state what that evidence cannot establish.

M8. Design a reform framework to reduce Administrator-elected government conflict while preserving legitimate Union interests. (20 marks, 250 words)

Model solution

Thesis: [ANALYSIS] Reform should not erase UT asymmetry; it should align authority, procedure and public accountability so that reserved Union interests are protected without routine paralysis.

1. **Competence clarity:** publish consolidated subject maps for Delhi, Puducherry and J&K, identifying the law-maker, executive controller and assent route. Use Article 239AA entries and sections 18/32 as legal anchors.

2. **Officer accountability:** create transparent posting and performance protocols. For Delhi NCCSA and J&K AIS matters, record institutional reasons, timelines and dissent rather than relying on opaque files.

3. **Difference resolution:** operationalise the 2018 Delhi principle - dialogue first, reference exceptionally, written rationale always. Adapt comparable consultation norms in Puducherry and J&K without contradicting their statutes.

4. **Legislative transparency:** publish the status and reasons for reserved/returned Bills, subject to legitimate confidentiality; require periodic Assembly reporting.

5. **Nomination safeguards:** for Puducherry, use public eligibility criteria, conflict disclosure and a representational purpose statement, while respecting *K. Lakshminarayanan (2018)*.

6. **Direct-UT participation:** strengthen elected local bodies, advisory committees, indigenous/community consultation and accessible grievance review in island/frontier territories.

7. **Periodic proportionality review:** Parliament should review whether the scope of direct administration still matches scale, strategy and democratic demand. J&K Statehood must be addressed through law, not converted into an assumed date.

Qualification: [LIMIT] security-sensitive material and urgent action may require confidentiality and speed.

Verdict: The objective is not maximum local power, but congruence between who decides, who can implement and who is publicly answerable.

Why this earns marks: It provides a sequenced institution-specific framework, protects Union interests and applies claim -> named evidence -> mechanism -> qualification throughout.

How to improve: Present reforms in sequence-clear field allocation, bounded referral, accountable services, fiscal transparency and judicial remedy-and tie each proposal to a named institutional friction.

Demand decoding: The directive **answer** requires a direct position on "M8. Design a reform framework to reduce Administrator-elected government conflict while...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M8. Design a reform framework to reduce Administrator-elected government conflict while preserving legitimate Union interests. (20 marks, 250 words)".

Analytical body:

1. **Claim and named evidence:** M8. Design a reform framework to reduce Administrator-elected government conflict while preserving legitimate Union interests. (20 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Thesis: [ANALYSIS] Reform should not erase UT asymmetry; it should align authority, procedure and public accountability so that reserved Union interests are protected without routine paralysis. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Competence clarity: publish consolidated subject maps for Delhi, Puducherry and J&K, identifying the law-maker, executive controller and assent route. Use Article 239AA entries and sections 18/32 as legal anchors. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Officer accountability: create transparent posting and performance protocols. For Delhi NCCSA and J&K AIS matters, record institutional reasons, timelines and dissent rather than relying on opaque files. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Legislative transparency: publish the status and reasons for reserved/returned Bills, subject to legitimate confidentiality; require periodic Assembly reporting. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M8. Design a reform framework to reduce Administrator-elected government conflict while preserving legitimate Union interests. (20 marks, 250 words)".

Executable exam-length answer / compression plan: For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

How to improve this answer: For "M8. Design a reform framework to reduce Administrator-elected government conflict while...", replace the weakest generalisation with one named community, region, institution, movement or source-dated dataset and state what that evidence cannot establish.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II **Grounded in:** Indian Polity by M. Laxmikant, Ch. 40 (direct check of the local Sixth Revised Edition PDF). **FACT:** = from source book · **ANALYSIS:** = inference / case law · **CURRENT:** = current affairs. *Companion:* basic/Union-Territories.md.

PART A - CREATION & LIST □

FACT: UTs were constituted in **1956** by the **7th Amendment Act + States Reorganisation Act** (from the old Part C/D territories). Created for varied reasons: **political/administrative** (Delhi, Chandigarh), **cultural distinctiveness** (Puducherry, DNH, Daman & Diu), **strategic importance** (A&N, Lakshadweep), **tribal/backward care** (later became states).

CURRENT: **CURRENT COUNT - 8 UTs** (Laxmikant's list of 9 is pre-2020):

- **FACT:** **J&K** and **Ladakh** created **2019** by the **J&K Reorganisation Act** (J&K with legislature, Ladakh without).
- **CURRENT:** **Dadra & Nagar Haveli and Daman & Diu merged** into a single UT on **26 Jan 2020** -> total dropped from 9 to

8.

- Current 8: **A&N Islands · Chandigarh · DNH & Daman & Diu · Delhi (NCT) · J&K · Ladakh · Lakshadweep · Puducherry.**

PART B - ADMINISTRATION (Art 239-241) □

FACT: Every UT is administered by the **President** through an **Administrator** he appoints - an **agent of the President**, *not* a head of state like a Governor. Designation may be **Lieutenant Governor / Chief Commissioner / Administrator**.

- **FACT:** **LG:** Delhi, Puducherry, A&N, J&K, Ladakh. **Administrator:** Chandigarh, DNH-DD, Lakshadweep.
- **FACT:** President may appoint a **state Governor as administrator** of an adjoining UT (acts **independently** of his CoM).

Legislature & law-making

Point	Detail
FACT: UTs with legislature + CoM	Puducherry (1963), Delhi (1992), J&K (2019)
FACT: Parliament's power	Can legislate on any list (incl. State List) for all UTs - unaffected even where a local assembly exists
FACT: Delhi assembly	State List except public order, police, land + Concurrent List
FACT: J&K assembly	State List except public order, police + Concurrent List
FACT: Puducherry assembly	State + Concurrent List matters insofar as applicable to Union Territories
FACT: President's Regulations	For A&N, Lakshadweep, DNH-DD, Ladakh (and Puducherry when its assembly is suspended/dissolved) - have the force of an Act of Parliament

FACT: **High Courts:** only **Delhi** has its own HC. Others fall under an adjacent state's HC (e.g., A&N -> Calcutta; Chandigarh -> Punjab & Haryana; J&K & Ladakh -> common J&K HC).

PART C - SPECIAL STATUS OF DELHI (Art 239-AA) □□

FACT: **69th Amendment Act, 1991** -> redesignated Delhi as the **National Capital Territory (NCT)**, administrator = **LG**. Assembly of **70** members (elections by the **ECI**); CoM = **10%** of assembly = **7** (CM + 6).

- FACT: **CM appointed by the President** (not the LG); ministers hold office during President's pleasure.
- FACT: On a **difference** between LG and ministers, the LG refers the matter to the **President**.
- FACT: President's Rule provision resembles **Art 356**.

CURRENT: Delhi Services controversy (CA)

- CURRENT: **SC (May 2023)**: the elected Delhi government has control over **services** (admin control over officers), except public order, police, land.
- CURRENT: **GNCTD (Amendment) Act 2023 + National Capital Civil Services Authority** effectively restored the LG/Centre's primacy over services - the live **federalism / LG-vs-elected-govt** tussle.

UPSC Traps

- WRONG: There are 9 UTs -> **8** (DNH + DD merged on 26 Jan 2020).
- WRONG: An Administrator is like a Governor -> he is an **agent of the President**, not a head of state.
- WRONG: Delhi CM is appointed by the LG -> appointed by the **President**.
- WRONG: Delhi assembly can legislate on police/land -> **excludes public order, police, land**.
- WRONG: Ladakh has a legislature -> **no legislature** (J&K has one).
- WRONG: Every UT has its own High Court -> only **Delhi** does.
- WRONG: Puducherry got special status via the 69th Amendment -> that was **Delhi**; Puducherry got its assembly in 1963.

CURRENT: CA hooks

- CURRENT: Delhi **Services** verdict + GNCTD 2023 Act - Centre vs elected NCT government.
- CURRENT: **Ladakh Sixth Schedule / statehood demand** (links to Special Provisions, Ch 22).
- CURRENT: **J&K statehood restoration** pending post-2024 assembly elections (2026 status).

Mains angles

- Art 239-AA and the Delhi model: an asymmetric, unresolved federal experiment. Examine.
- The "agent of the President" design vs democratic aspirations in UTs with legislatures.

Verified PYQ cross-link

- FACT: **2025 GS-II Q4 (10 marks, 150 words)** asks the nature, powers and functions of the J&K UT Legislative Assembly after the 2019 Reorganisation Act. Use this file for the UT-vs-State distinction; the complete verified-PYQ route is in 22_Special-Provisions.md.

Historical PYQ Integration (2018-2023)

Status: Question-level PYQ demand is integrated into this owner. **Provenance:** Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md.

- **Years represented:** 2018
- **Paper(s):** GS-II
- **Routed question demands:** 1

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2018	GS-II	11	Supreme Court judgement on the Lt Governor and the Delhi government	Examine · 15 marks · 250 words	Routed to owning topic	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.

What this owner must now support

- Supreme Court judgement on the Lt Governor and the Delhi government

The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

CONSOLIDATED REGISTER NOTES

Current territorial ledger

8 UNION TERRITORIES

|
 +--> with legislature: Delhi | Puducherry | Jammu and Kashmir
 |
 +--> without legislature: A&N | Chandigarh | DNHDD | Ladakh | Lakshadweep

- DNH and Daman and Diu merged from 26 January 2020.
- J&K and Ladakh became UTs from 31 October 2019.
- J&K has an elected Assembly after the 2024 election.
- J&K Statehood remains pending as on 5 September 2026.
- Ladakh remains without a legislature.

Constitutional spine

Provision	Rapid recall
239	President administers through appointed Administrator; adjoining State Governor may be Administrator in independent UT capacity
239A	Parliament may create Puducherry legislature/CoM; 2019 Act section 13 applies its provisions to J&K
239AA	NCT Delhi; Assembly, CoM, competence, Parliament and reference
239AB	Delhi failure-of-machinery route
239B	Puducherry ordinance power; 239AA(8) adapts it to Delhi
240	presidential regulations for specified UTs; Puducherry conditionally; Ladakh via 2019 Act
241	UT High Courts and extension/exclusion of State HC jurisdiction
246(4)	Parliament may legislate on any matter, including State List, for territory not included in a State

Administrator and Governor distinction

ADMINISTRATOR / LG
 President's Article 239 channel
 UT-specific powers
 not a constituent-State head

STATE GOVERNOR
 Part VI constitutional head
 ordinary State parliamentary framework

- One person may hold both capacities.
- As adjoining UT Administrator, a State Governor acts independently of the State CoM.
- Never transfer State-Governor assumptions mechanically to a UT.

Article 240 regulation map

Available	Not available as general route
A&N	Chandigarh
Lakshadweep	Delhi
DNHDD	J&K with functioning Assembly
Ladakh through section 58	
Puducherry during dissolution/suspension	

- Regulation has force of parliamentary Act and may amend applicable law.
- Puducherry: functioning Assembly blocks Article 240; dissolution/suspension revives it.
- Article 239B ordinance is a different route and is unavailable during dissolution/suspension.

High Court map

UT	High Court
Delhi	Delhi HC
A&N	Calcutta HC
Chandigarh	Punjab and Haryana HC
DNHDD	Bombay HC
Lakshadweep	Kerala HC
Puducherry	Madras HC
J&K and Ladakh	High Court of Jammu & Kashmir and Ladakh

- Delhi alone has its own separate UT High Court.
- Circuit bench does not equal separate High Court.

Delhi legal sequence

69th Amendment / Article 239AA

- > 2018: aid/advice rule, no independent LG power, exceptional reference
- > May 2023: Entry 41 services within NCTD field except three exclusions
- > Act 19 of 2023: NCCSA + final LG decision on persistent disagreement
- > challenge unresolved; Act treated as operative

- Exclusions: public order, police, land.
- Parliament retains competence over every NCT field.
- CM is appointed by President.
- CoM maximum: 10 per cent of Assembly strength.
- Current trap: never state unqualified elected-government services control.

NCCSA quick recall

Component	Rule
Chairperson	Chief Minister
other members	Chief Secretary; Principal Home Secretary
decision	majority of present and voting
function	service transfer/posting and vigilance recommendations within statutory field
LG	may accept, seek material, return with reasons; final on persistent difference

Puducherry quick recall

- Article 239A + Government of Union Territories Act, 1963.
- 30 elected members; Central Government may nominate up to 3.
- Section 18: applicable State + Concurrent List competence.
- Section 21: Parliament/earlier law prevails, with assent qualification and later override.
- CM appointed by President.
- Section 50: Administrator and CoM under President's general control/directions.
- *K. Lakshminarayanan (2018)*:
- no mandatory Chief Minister concurrence for nominations;
- nominees are full members;
- nominees vote on all questions, including budget and no-confidence.

Jammu and Kashmir institutional recall

2019 Act

- s.13 applies Article 239A
- s.14 creates Assembly
- s.32 State/Concurrent competence except public order + police
- s.35 parliamentary supremacy
- s.53 aid/advice + LG discretion including AIS/ACB
- s.55 business rules
- s.73 failure mechanism
- s.75 common High Court

- 2024 election restored an elected Assembly and CoM.
- Official 2026-27 Budget proves a functioning House and elected finance executive.
- 2024 Second Amendment Rules route specified police/public order/AIS/ACB, law, prosecution, prisons, forensic and senior-posting matters to LG channels.
- Statehood not restored; no fixed Supreme Court deadline.
- Land is not one of section 32's blanket exclusions.

Non-legislature UT profiles

UT	Executive	Article 240	High Court	Key recall
A&N	LG	yes	Calcutta	strategic archipelago
Chandigarh	Administrator	no	Punjab and Haryana	shared capital, separate UT
DNHDD	Administrator	yes	Bombay	one merged UT
Ladakh	LG	yes via s.58	J&K and Ladakh	no Assembly
Lakshadweep	Administrator	yes	Kerala	small-island ecology

Federal and democratic debate

Claim	Named evidence	Analysis	Qualification
asymmetry serves function	Article 239/240; island/frontier/capital models	permits tailored coordination	reason must remain proportionate
legislatures create accountability	Articles 239A/AA; 2019 Act	voters can sanction ministers	officer/reserved-field control may be split
Union supremacy is durable	Article 246(4), repugnancy clauses	UT legislature is not State-equivalent	local competence remains legally real
courts protect elected sphere	Delhi 2018/2023	aid/advice and accountability have constitutional force	Parliament may legislate within competence
status change remains open	Article 3 and J&K debate	UT can be transitional	promise is not legal restoration

Friction diagnosis

electoral promise

- > needs law
- > needs officer
- > needs money
- > may need assent / no reference
- > split control
- > delay and blame shifting
- Ask who controls each step.
- Separate legal overlap from party-political behaviour.
- Test intervention for textual source, reason, proportionality and review.

PYQ routes

- **2018 GS-II Q11:** Article 239AA -> 2018 holdings -> limits of judicial settlement -> 2023 judgment -> 2023 Act -> qualified verdict.
- **2025 GS-II Q4:** statutory nature -> sections 32/35/53 -> legislative/financial/accountability functions -> 2024 election + 2026 budget -> pending Statehood.
- No additional direct Prelims route was found in audited 2018-2026 ledgers; do not fabricate one.

Evidence bank for Mains

1. Article 239 - President through Administrator.
2. Article 246(4) - Parliament's all-subject UT competence.
3. Article 240 - direct regulations for specified UTs.
4. 2018 Delhi Constitution Bench - aid/advice, no independent LG decision, exceptional reference.
5. May Delhi services judgment (2023) - Entry 41 and triple-chain accountability.
6. GNCTD Amendment Act, 2023 - NCCSA and final LG disagreement decision.
7. *K. Lakshminarayanan (2018)* - Central nomination and full nominee vote.
8. J&K Reorganisation Act sections 13, 32, 35, 53 and 75.
9. G.S.R. 386(E), 2024 - specified J&K business routing.
10. J&K official Budget Speech 2026-27 - functioning elected government.
11. *In Re Article 370* - election direction and earliest statehood restoration, no fixed date.
12. Article 241 - judicial coverage and review architecture.

Last-minute traps

1. Eight UTs, not nine.
2. DNHDD is one UT.
3. Delhi, Puducherry and J&K have legislatures.
4. Administrator is not a State Governor.
5. Article 246(4), not Article 240, is Parliament's general State-List UT power.
6. Article 239A is Puducherry's enabling provision; J&K uses it through section 13.
7. Article 239AA is Delhi only.
8. Article 239AB concerns Delhi failure of machinery.
9. Chandigarh is not in the Article 240 set.
10. Puducherry Article 240 power is conditional on dissolution/suspension.
11. Delhi excludes public order, police and land.
12. J&K excludes public order and police, not blanket land.
13. 2018: "any matter" does not mean "every matter".
14. 2023 services judgment is not the entire current rule; add Act 19 of 2023.
15. NCCSA has CM plus two senior officials; majority decision.
16. Persistent NCCSA-LG difference ends with LG's decision under section 45H.
17. Puducherry nominees can vote on budget and no-confidence.
18. J&K has an elected Assembly after 2024.
19. Election did not automatically restore J&K Statehood.
20. Delhi alone has a separate UT High Court.
21. Current common court name: High Court of Jammu & Kashmir and Ladakh.
22. A pending legal challenge is not a completed invalidation.

Final verdicts

- **Constitutional design:** UTs are differentiated instruments of territorial governance, not a uniform category.
- **Parliament:** Article 246(4) ensures continuing Union legislative supremacy over every UT.
- **Democracy:** a UT Assembly creates real responsible government but not State-equivalent autonomy.
- **Delhi:** representative primacy survives as a constitutional principle; services currently operate through the 2023 NCCSA-LG statute.
- **Puducherry:** broad statutory self-government coexists with central nomination and presidential control.
- **J&K:** elected government has returned, while Statehood and full federal parity remain pending.
- **Reform:** legitimacy depends on narrow reserved fields, reasoned intervention, transparent routing and alignment of implementation control with public accountability.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Rationale, evolution and the current eight

WHY UTS EXIST

Union responsibility + differentiated local democracy.

EVOLUTION

Part C/D arrangements -> 7th Amendment and 1956 reorganisation -> modern UT category.

2019: J&K and Ladakh created | 26 Jan 2020: DNH and DD merged.

CURRENT EIGHT

A&N | Chandigarh | DNHDD | Delhi | J&K | Ladakh | Lakshadweep | Puducherry.

WITH LEGISLATURE: Delhi, Puducherry, J&K | WITHOUT: the other five.

MUST REMEMBER: Separate Articles 239, 239A, 239AA, 239AB, 239B, 240, 241 and 246(4), then distinguish direct administration, statutory legislatures and Delhi's constitutionally entrenched NCT model.

ASCII MASTER FLOW - PANEL 2/12: Part VIII constitutional map

ARTICLE MAP

239 administration through President-appointed Administrator.

239A Puducherry legislature/CoM enabling power | 239B ordinance route.

239AA Delhi NCT scheme | 239AB Delhi failure-of-machinery route.

240 presidential regulations | 241 High Courts.

246(4): Parliament may legislate on every list for territory outside a State.

CORE RULE

A local UT legislature never removes Parliament's continuing competence.

ASCII MASTER FLOW - PANEL 3/12: Administrator, legislature and direct rule

PRESIDENT -> ADMINISTRATOR/LG -> UT ADMINISTRATION

The Administrator is the President's agent, not a Part VI Governor.

A State Governor acting as adjoining-UT Administrator acts independently of the State CoM.

THREE MODELS

Direct administration | statutory legislature | Delhi's constitutional NCT design.

ARTICLE 240

Specified-territory regulations have the force of an Act of Parliament.

ASCII MASTER FLOW - PANEL 4/12: High Courts and legislature-free UTs

HIGH COURT MAP

Delhi -> Delhi HC | J&K + Ladakh -> common J&K and Ladakh HC.

A&N -> Calcutta | Chandigarh -> Punjab & Haryana | DNHDD -> Bombay.

Lakshadweep -> Kerala | Puducherry -> Madras.

WITHOUT LEGISLATURE

A&N | Chandigarh | DNHDD | Ladakh | Lakshadweep.

Direct Union administration still coexists with MPs, courts, local bodies and legal remedies.

ASCII MASTER FLOW - PANEL 5/12: Delhi Article 239AA design

DELHI NCT

69th Amendment 1991 -> Article 239AA -> Assembly + CoM + LG.

ASSEMBLY FIELD

State and Concurrent Lists except Entries 1, 2 and 18, plus related 64, 65 and 66.
Reserved core: public order | police | land.

EXECUTIVE

Aid and advice is the rule inside the allotted field.

LG reference to President is exceptional, not routine.

Parliament retains overriding competence; Article 239AB is the breakdown route.

ASCII MASTER FLOW - PANEL 6/12: Delhi cases, services and statutory response

GNCTD aid-and-advice judgment (2018)

Representative government and aid/advice prevail within Delhi's allotted field.

Delhi services judgment (2023) – 11 MAY

Entry 41 services followed elected accountability outside the reserved fields.

ACT 19 OF 2023

NCCSA recommends transfers/postings; LG has statutory final say on disagreement.

28 AUGUST 2026 CONTROL

The Act remains operative; pending constitutional challenge is not invalidation.

CLOSE DISTINCTION: Delhi excludes State List Entries 1, 2 and 18 plus related 64-66; J&K excludes public order and police; Puducherry's statutory competence is over List II/III matters insofar as applicable to Union Territories. Parliament retains overriding UT competence.

ASCII MASTER FLOW - PANEL 7/12: Puducherry statutory model

ARTICLE 239A + GOVERNMENT OF UNION TERRITORIES ACT 1963

Statutory Assembly + CoM; Parliament retains UT-wide power.

Article 239B ordinance requires prior presidential instructions.

K. LAKSHMINARAYANAN (2018)

Central nomination of up to three members upheld; nominees possess voting rights.

ARTICLE 240

Regulation power is unavailable during normal Assembly functioning.

It revives during constitutionally qualifying suspension or dissolution.

ASCII MASTER FLOW - PANEL 8/12: Jammu and Kashmir and Ladakh after 2019

J&K REORGANISATION ACT 2019 – EFFECTIVE 31 OCTOBER

J&K -> UT with legislature | Ladakh -> UT without legislature.

J&K ASSEMBLY

State/Concurrent competence except public order and police; land is not generally excluded.

Budget, legislation and executive accountability operate under the Act and rules.

CURRENT

Elected Assembly and CoM function after 2024; Statehood not restored by 5 Sep 2026.

Ladakh has no legislature; safeguard demands are proposals, not enacted status.

ASCII MASTER FLOW - PANEL 9/12: Delhi, Puducherry and J&K compared

DELHI | constitutional Article 239AA | excludes public order, police, land.
PUDUCHERRY | Article 239A + 1963 Act | List II/III matters insofar as applicable to UTs.
J&K | 2019 Act + Article 239A application | excludes public order and police.

ALL THREE

Assembly + CoM + Administrator/LG; Parliament retains overriding UT competence.

DO NOT FLATTEN

Legal source, nominated membership, services control and referral rules differ.

ASCII MASTER FLOW - PANEL 10/12: Friction, accountability and reform

WHY FRICTION OCCURS

Split legislative field + divided officer control + referral/override powers.

ACCOUNTABILITY TEST

Exact field -> decision-maker -> staff/finance -> override -> court remedy.

REFORM

Clarify reserved fields | bound referrals | align officers with accountability.
Publish reasons and timelines | preserve judicial review | date every current claim.

VERDICT

Union safeguards are strongest when narrow, reasoned and democratically accountable.

ASCII MASTER FLOW - PANEL 11/12: PYQs, case law and close-option traps

PYQ 2018 GS-II Q11

Article 239AA -> 2018 ratio -> services sequel -> operative 2023 Act -> verdict.

PYQ 2025 GS-II Q4

2019 Act -> J&K Assembly field/functions -> LG/Parliament limits -> Statehood caveat.

CASE CONTROLS

GNCTD aid-and-advice judgment (2018).
Delhi services judgment (2023).
K. Lakshminarayanan (2018).
In Re: Article 370 of the Constitution (2023).

TRAPS

239AB != 239B | Chandigarh not Article 240-listed | Delhi exclusions != J&K exclusions.

ASCII MASTER FLOW - PANEL 12/12: Exam answer spine and current firewall

ANSWER SPINE

Classify model -> exact Article/statute -> local democratic mechanism.
Add Union safeguard -> institutional friction -> case/year -> calibrated reform.

EVIDENCE METHOD

Claim -> named authority -> mechanism -> dated control -> limitation -> verdict.

CURRENT FIREWALL – 28 AUGUST 2026

8 UTs | 3 legislatures | J&K elected but still UT.
GNCTD Act 2023 operative | challenge unresolved | proposal is not law.

THESIS

A UT legislature is real self-government, but not State-equivalent autonomy.
LEGAL/SOURCE LIMIT: India has eight Union Territories and three legislatures: Delhi, Puducherry and J&K. J&K has an elected government but remains a UT; Ladakh has no legislature. Act 19 of 2023 remains operative while the Delhi services constitutional challenge is unresolved.